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TITLE 8—ALIENS AND NATIONALITY

Chapter I—Immigration and Naturalization Service, Department of Justice

PART 231—LISTS OF ALIENS AND CITIZEN PASSENGERS ARRIVING OR DEPARTING

DESIGNATION OF PORTS OF ENTRY

The following amendments to Part 231 of Chapter I of Title 8 of the Code of Federal Regulations are hereby prescribed:

a. Paragraph (b) of § 231.6 *Ports of entry for aliens arriving by vessel or by land transportation* is amended in the following respects:

1. The list of Class G ports of entry under District No. 6—Miami, Fla., is amended by adding "Pascagoula, Miss."

2. Effective as of September 1, 1953, the list of Class A ports of entry under District No. 14—San Antonio, Tex., is amended by inserting "Progreso, Tex." between "Port Arthur, Tex.," and "Rio Grande City, Tex." and deleting "Thayer, Tex."

3. The list of Class B ports of entry under District No. 14—San Antonio, Tex., is amended by deleting "Delores, Tex."

4. The list of Class B ports of entry under District No. 17—Honolulu, T. H., is deleted and the list of Class C ports of entry is amended by inserting "Hilo, T. H." before "Kahului, T. H."

b. Paragraph (a) of § 231.7 *Ports of entry for aliens arriving by aircraft* is amended by deleting "Swanton, Vt., Warren R. Austin Airport" from the list of ports of entry for aliens arriving by aircraft.

(Sec. 103, 66 Stat. 173; 8 U. S. C. 1103)

NOTE: The record-keeping and reporting requirements of these regulations have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Dated: November 23, 1953.

HERBERT BROWNELL, Jr.,
Attorney General.

Recommended: November 5, 1953.

ARGYLE R. MACKEY,
Commissioner of Immigration and Naturalization.

[F. R. Doc. 53-10038; Filed, Nov. 30, 1953; 8:54 a. m.]

TITLE 14—CIVIL AVIATION

Chapter I—Civil Aeronautics Board

Subchapter C—Procedural Regulations

[Reg. PR-22]

PART 302—RULES OF PRACTICE IN ECONOMIC PROCEEDINGS

SUBPOENAS; TESTIMONY BY BOARD PERSONNEL AND PRODUCTION OF BOARD RECORDS

Adopted by the Civil Aeronautics Board at its office in Washington, D. C., on the 25th day of November 1953.

The present § 302.19 of the procedural regulations, relating to subpoenas, does not now contain any specific provision restricting the issuance of subpoenas for testimony by Board personnel or the production of Board documents in economic proceedings. However, when the section is considered in the light of the grant of the subpoena power in section 1004 of the Civil Aeronautics Act and the restriction contained in Board Administrative Regulations, it is clear that it was not the purpose or intention of the board that subpoenas should be issued under the section to obtain testimony of Board personnel or the production of Board records. Under existing administrative regulations, Board officers or employees are forbidden to disclose official information, in response to a subpoena from any source, unless specifically authorized to do so.

Although this is the Board's interpretation of the existing regulations, it is deemed desirable as a matter of notice to issue a clarifying amendment to § 302.19 of the procedural rules containing this view of the application of the section.

By this action the Board does not intend to deprive parties of the opportunity to request, in appropriate situations, the testimony of Board personnel or the production of Board documents. The rule set forth below provides a procedure for such purpose by way of motion under Rule 18. A denial of such a motion will not be reviewed by the Board unless the Examiner grants an appeal from his ruling under Rule 18 (f). Since Board regulations prohibit officers and employees from disclosing official information without Board authorization, an Examiner's ruling granting a motion for testimony

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FEDERAL REGISTER

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by Board members, officers, or employees or the production of documents in their custody will be reviewed by the Board on its own motion. In making such a review the Board will follow the general policy of making such evidence available (a) if found relevant and of reasonable scope, (b) if there is an adequate showing by the moving party of a need for the evidence requested, and (c) if no other substantial considerations, such as security or the Board's investigative or decisional processes are involved.

Since this amendment is not a substantive rule but one of agency procedure, notice and public procedure hereon are unnecessary, and the amendment may be made effective upon less than 30 days notice.

In consideration of the foregoing, the Civil Aeronautics Board hereby amends Part 302 of the procedural regulations (14 CFR Part 302) as follows, effective November 25, 1953:

1. By adding to § 302.19 a new paragraph (g) to read as follows:

(g) The provisions of this section are not applicable to the attendance of Board members, officers or employees or the production of documentary evidence in the custody thereof at a hearing. Applications therefor shall be addressed to the Examiner in writing and shall set forth the need of the moving party for such evidence and its relevancy to the issues of the proceeding. Such applications shall be processed as motions in accordance with § 302.18 (Rule 18), except that the grant thereof by an Examiner, in whole or in part, shall be immediately reviewed by the Board upon its own initiative and shall be subject to final Board action.

(Sec. 205, 52 Stat. 984; 49 U. S. C. 425. Interprets or applies sec. 1001, 52 Stat. 1017; 49 U. S. C. 641)

By the Civil Aeronautics Board.

[SEAL] M. C. MULLIGAN, *Secretary.*

[F. R. Doc. 53-10053; Filed, Nov. 30, 1953; 8:51 a. m.]

Chapter II—Civil Aeronautics Administration, Department of Commerce

[Amdt. 51]

PART 610—MINIMUM EN ROUTE IFR ALTITUDES

MISCELLANEOUS AMENDMENTS

The minimum en route IFR altitudes appearing hereinafter have been coordinated with interested members of the industry in the regions concerned insofar as practicable. The altitudes are adopted without delay in order to provide for safety in air commerce. Compliance with the notice, procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to the public interest, and therefore is not required.

Part 610 is amended as follows:

1. Section 610.14 *Green civil airway No. 4* is amended to read in part:

From—	To—	Minimum altitude
Columbus, Ohio (LFR)	Adamsville (INT), Ohio.	2,400
Adamsville (INT), Ohio	Wheeling, W. Va. (LF/RBN).	2,600
Wheeling, W. Va. (LF/RBN).	Pittsburgh, Pa. (LFR).	2,500
Pittsburgh, Pa. (LFR).	New Alexandria, Pa. (LF/RBN).[1]	3,000
New Alexandria, Pa. (LF/RBN).	Altoona, Pa. (LFR)	4,500

[1] 4,000'—Minimum crossing altitude at New Alexandria (LF/RBN), eastbound.

2. Section 610.211 *Red civil airway No. 11* is amended to eliminate:

From—	To—	Minimum altitude
Georgetown (INT), Ky.	Huntington, W. Va. (LFR).	2,600

3. Section 610.218 *Red civil airway No. 18* is amended to read in part:

From—	To—	Minimum altitude
Cincinnati, Ohio (LFR).	Huntington, W. Va. (LF/RBN).	2,300

4. Section 610.219 *Red civil airway No. 19* is amended to read in part:

From—	To—	Minimum altitude
Sandusky (INT), Ohio.	Int. SE crs. Detroit, Mich. (LFR) and W crs. Akron, Ohio (LFR).	2,300
Int. SE crs. Detroit, Mich. (LFR) and W crs. Akron, Ohio (LFR).	Akron, Ohio (LFR)	2,500
Akron, Ohio (LFR)	Int. SW crs. Pittsburgh, Pa. (LFR) and NW crs. Morgantown, W. Va. (LFR).	2,500
Int. SW crs. Pittsburgh, Pa. (LFR) and NW crs. Morgantown, W. Va. (LFR).	Morgantown, W. Va. (LFR).	3,000

5. Section 610.220 *Red civil airway No. 20* is amended to read in part:

From—	To—	Minimum altitude
Akron, Ohio (LFR)	Columbiana (INT), Ohio.	2,500
Columbiana (INT), Ohio.	Pittsburgh, Pa. (LFR).	2,600

6. Section 610.285 *Red civil airway No. 85* is amended to read in part:

From—	To—	Minimum altitude
Columbiana (INT), Ohio.	Butler, Pa. (LF/RBN).	2,500
Butler, Pa. (LF/RBN)	Int. NE crs. Pittsburgh, Pa. (LFR) and 113°-293° mag brg. Butler, Pa. (LF/RBN).	2,500
Int. NE crs. Pittsburgh, Pa. (LFR) and 113°-293° mag brg. Butler, Pa. (LF/RBN).	Altoona, Pa. (LFR)	4,500

7. Section 610.302 *Red civil airway No. 102* is amended to read in part:

From—	To—	Minimum altitude
Lexington, Ky. (LF/RBN).	Huntington, W. Va. (LF/RBN).	2,500

8. Section 610.615 *Blue civil airway No. 15* is amended to read in part:

From—	To—	Minimum altitude
Huntington, W. Va. (LF/RBN).	Columbus, Ohio (LFR).	2,500

9. Section 610.621 *Blue civil airway No. 21* is amended to read in part:

From—	To—	Minimum altitude
Int. S crs. Youngstown, Ohio (LFR) and NW crs. Pittsburgh, Pa. (LFR).	Youngstown, Ohio (LFR).	2,700
Youngstown, Ohio (LFR).	Int. N crs. Youngstown, Ohio (LFR) and SW crs. Erie, Pa. (LFR).	2,200

10. Section 610.673 *Blue civil airway No. 73* is amended by adding:

From—	To—	Minimum altitude
Pittsburgh, Pa. (LFR).	Brookville, Pa. (LF/RBN).	3,500

11. Section 610.6017 *VOR civil airway No. 17* is amended to read in part:

From—	To—	Minimum altitude
Laredo, Tex. (VOR)	Cotulla, Tex. (VOR)	1,800

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply sec. 601, 52 Stat. 1007, as amended; 49 U. S. C. 551)

These rules shall become effective December 8, 1953.

[SEAL] F. B. LEE,
Administrator of Civil Aeronautics.

[F. R. Doc. 53-10011; Filed, Nov. 30, 1953; 8:46 a. m.]

TITLE 22—FOREIGN RELATIONS

Chapter I—Department of State

[Dept. Reg. 108.199]

PART 75—INTERNATIONAL TRAFFIC IN ARMS, AMMUNITION AND IMPLEMENTS OF WAR

NOVEMBER 25, 1953.

The regulations governing the international traffic in arms, ammunition and implements of war issued on June 2, 1942 (Part 75, Title 22, Code of Federal Regulations) are hereby revoked and superseded in their entirety by the issuance of the following regulations effective January 1, 1954.

DEFINITIONS AND INTERPRETATIONS

Sec.
75.1 General.
75.2 Components, parts, accessories, or attachments subject to section 12 of joint resolution.
75.3 Definition of "fuel thickeners".
75.4 Definition of "chemical toxicological agents".
75.5 Definition of propellants and explosives.
75.6 Definition of specialized military equipment.
75.7 Definition of vessels of war.
75.8 Definition of aircraft.
75.9 Cathode ray tubes being shipped with radar.
75.10 Forgings, castings and machined bodies.

REGISTRATION

75.11 Requirements for registration.
75.12 Production for experimental or scientific purposes.
75.13 Application for registration.
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75.15 Notification of changes in information furnished by registrants.
75.16 Records of manufacture, exportation and importation.

LICENSES

75.17 Application for license.
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75.20 Intransit licenses.
75.21 Validity and terms of licenses.
75.22 Amendments and alterations.
75.23 Ports of exit or entry.
75.24 Country of ultimate destination.
75.25 Exportation of arms, ammunition and implements of war to Cuba.
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75.27 Shippers' export declaration.
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75.29 National Firearms Act; Federal Firearms Act; Federal Explosives Act.
75.30 Foreign trade zones.
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GENERAL PROVISIONS AND EXEMPTIONS

75.34 Shipment by or to the United States Government.
75.35 Authorization to collectors of customs to waive presentation of license document under prescribed conditions.
75.36 Canadian shipments.
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75.38 Aircraft of foreign registry entering the United States.
75.39 Articles returned to the United States for repair or overhaul and reexport.
75.40 Antique arms and implements of war.
75.41 Arms carried on person or in baggage.
75.42 Arms for the individual use of members of the armed forces.

VIOLATIONS AND PENALTIES

75.43 Violation in general.
75.44 Penalties for violations.
75.45 Authority of collectors of customs.
75.46 Seizure and forfeiture.

AUTHORITY: §§ 75.1 to 75.46 issued under sec. 12, 54 Stat. 10; 22 U. S. C. 452. Statutory provisions interpreted or applied are cited to text in parentheses.

DEFINITIONS AND INTERPRETATIONS

§ 75.1 *General.* (a) The term "proclamation" shall mean Presidential Proclamation 3038 (18 F. R. 7505) or any superseding proclamation issued pursuant to the provisions of subsection (i) of section 12 of the joint resolution.

(b) The term "article" shall mean any of the arms, ammunition, and implements of war enumerated in the proclamation referred to above, and components, parts, accessories or attachments covered by § 75.2.

§ 75.2 *Components, parts, accessories or attachments subject to section 12 of joint resolution.* The following components, parts, accessories, and attachments and related items for each of the articles enumerated in the proclamation arranged under categories and titles corresponding to those in the proclamation shall be considered arms, ammunitions and implements of war for the purpose of section 12 of the joint resolution.

CATEGORY 1: *Small arms and machine guns.* Components and parts and the following accessories and attachments: Bayonets, slings and straps, gun-mounts and belts, links and magazines for machine guns.

CATEGORY 2: *Artillery and projectors.* Components and parts and the following accessories and attachments: Mounts and carriers.

CATEGORY 3: *Ammunition.* The following components, parts, accessories and attachments: Cartridge cases, powder bags, bullets, jackets, cores, shells (excluding shotgun), projectiles; boosters, percussion caps, fuses or fuzes and components thereof, primers, and other detonating devices for such ammunition.

CATEGORY 4: *Bombs, torpedoes, rockets, and guided missiles.* Components and parts including but not limited to fuses or fuzes and components thereof; bomb racks and shackles; bomb shackle release units; bomb ejectors; torpedo tubes; torpedo and guided missile boosters; launching racks, projectors; control mechanisms and control systems; pistols (exploders); ignitors; detonators; mine detectors; fuze or fuse arming devices; and the following items related thereto: intervalometers and components thereof; bomb lift trucks; bomb and torpedo handling trucks; trailers, hoists, and skids for handling bombs; guided missile launchers; fuel thickeners (see § 75.3).

CATEGORY 5: *Fire control equipment and range-finders.* Components, parts, accessories and attachments specifically designed for the articles enumerated under category V of the proclamation.

CATEGORY 6: *Tanks and ordnance vehicles.* Components, parts, accessories and attachments, specifically designed for such vehicles.

CATEGORY 7: *Toxicological agents.* Components, parts, attachments, and accessories specifically designed for equipment for the dissemination, detection, identification of and defense from the chemical toxicological agents defined in § 75.4 and of biological toxicological agents.

CATEGORY 8: *Propellants and explosives.* See § 75.5.

CATEGORY 9: *Vessels of war and special naval equipment.* See also § 75.7. The following components, parts, accessories and attachments of vessels of war; turrets and gun mounts; submarine storage batteries, and catapults. Also armor plate which is included under category XI (c) of the proclamation.

(b) Components, parts, attachments, and accessories specifically designed for mine laying, mine detection, and detonation, and mine sweeping equipment.

(c) Components, parts, attachments and accessories specifically designed for submarine nets.

CATEGORY 10: *Aircraft.* All components, parts and accessories for aircraft. This does not include ground handling and maintenance equipment and bulk materials, such as dopes, paints, oils, cable, wire, tubing, hose, aluminum sheets. (See § 75.8.)

CATEGORY 11: *Miscellaneous equipment.* No components, parts, accessories or attachments are included for sub-categories (b), (d), (f) and (h) of category XI of the proclamation. (a) All components, parts, attachments, and accessories specifically designed for use in:

(1) Radar;

(2) Electronic countermeasures and jamming equipment;

(3) Underwater sound equipment;

(4) Other electronic equipment specially designed for military use, except cathode ray tubes for radar (see § 75.9);

(5) Radio communications equipment bearing a military designation and specially designed for military use;

(6) Electronic navigational aids such as radio direction finding equipment;

(7) Radio distance measuring systems such as Shoran and hyperbolic grid systems such as Raydist, Loran, and Decca.

(c) Components and parts specifically designed for use in military steel helmets, body armor, and flak suits.

(e) Components and parts specifically designed for pressurized breathing equipment, partial pressure suits, anti "G" suits, aircraft crash helmets, parachutes, and liquid oxygen converters.

(g) Components, parts, attachments and accessories for specialized military training equipment as defined in § 75.6.

§ 75.3 *Definition of "fuel thickeners".* As used in § 75.2, Category 4, these are liquids or solids in granular forms (commonly metallic salts of fatty acids such as the aluminum salt of octoic acid) which when mixed with petroleum products produce a gel-type mixture. The burning characteristics of such a gel can be controlled by the type of thickener used and the quantity added such as napalm and octal.

§ 75.4 *Definition of "chemical toxicological agents".* The term "chemical toxicological agents" as used in § 75.2, Category 7, shall include but not be limited to: Cyanogen chloride, hydrogen cyanide, diphosgene, fluorine (but not fluorene), Lewisite gas, mustard gas (dichlorodiethyl sulfide), phenylcarbylamine chloride, phosgene, adamsite

(diphenylaminochloroarsine), dibromodimethyl ether, dichlorodimethyl ether, diphenylchloroarsine, diphenylcyanarsine, ethyldibromoarsine, ethyldichloroarsine, methyldichloroarsine, phenyldibromoarsine, phenyldichloroarsine, cyanodimethylaminoethyloxyphosphine oxide, fluoroisopropoxymethylphosphine oxide, fluoromethylpinacolyloxyphosphine oxide, and related compounds.

§ 75.5 *Definition of propellants and explosives.* (a) As used in § 75.2, Category 8, the term "propellants" shall include but not be limited to propellant powders. The term "military high explosives" shall include ammonium picrate, black soda powder, potassium nitrate powder, hexanitrodiphenylamine, pentaerythritetetranitrate (penthrite, pentrite or PETN), nitrocellulose having a nitrogen content of more than 12.20 percent, tetryl (trinitrophenylmethylnitramine or "tetranitromethylaniline"), trimethylenetrinitramine (RDX, Cyclonite, Hexogen or T4), trinitroanisol, trinitronaphthalene, dinitronaphthalene, tetranitronaphthalene, trinitrotoluene, trinitroxylene.

(b) Explosive mixtures or devices which are not listed above but which contain minor quantities of the types of explosives listed here are not considered to be arms, ammunition, and implements of war, solely for the reason that they may contain such explosive components.

§ 75.6 *Definition of specialized military equipment.* As used in § 75.2, Category 11 (g), specialized military equipment shall include but not be limited to link-type trainers, attack trainers, operational flight trainers, radar target generators, gunnery training devices, anti-submarine warfare trainers, flight simulators, radar trainers, instrument flight trainers, navigation trainers, target equipment, armament trainers, pilotless aircraft trainers, and mobile training units.

§ 75.7 *Definition of vessels of war.* As used in § 75.2, category 9, the following types of vessels are considered to be vessels of war:

(a) *All combatant vessels and craft, including the following:* Battleships (BB); command ships (CBC, CLC); cruisers (CA, CAG, CB, CL, CLAA, CLG); aircraft carriers (CVA, CVL, CVE); destroyers (DD, DL, DDE, DDR); submarines (SS, SSN, SSG, SSK, SSR, SST, ASSA, ASSP). Amphibious force-flag ship (ACC); cargo ship attack (AKA); transports (APA, APD); fire support ships (IFS); landing ships (LSFF, LSTL, LSSL, LSD, LSM, LSMR, LST, LSV); landing craft (LOC, LCI, LCM, LCP, LCP-G, LCB-S, LCV, LCVP, LVT-A, LCT-A, LVT); weasels (M-24, M-29), landing vessels (LVW, DUKV, LCU); mine vessels (ACM, AM, AMC, AMCU, AMS, CM, CMC, DM, DMS, MSB, XMAP, YMP, YMS, YNG), patrol vessels (PY, YP); motor torpedo boat (PT); escort vessels (DE, DEC, DER, PCE, PCER, PCEC); subchasers (PCC, PCSC, SCC, SC, PC, PCS); frigate (PF); motor gun boats (PGM, PR).

(b) *Naval auxiliary and service vessels and craft.* Destroyer tender (AD); degaussing vessel (ADG), ammunition ship (AE); store ship (AF); ice breaker (AGB); motor torpedo boat tender (AGP); surveying ships (AGS, AGSC); auxiliary submarine (AG-(SS)); net laying ship (AN); oilers and tankers (AO, AOG, AOS); transports (AP, APC); barrack ships (APB, APL); repair ships (AR, ARB, ARG, ARH, ARL, ARV, ARVA, ARVE); cable repairing or laying ship (ARC); salvage vessels (ARS, ARSD, ARST); submarine tenders and rescue vessels (AS, ASR, X); tugs ARA, ATF, ATR, YTB, YTL, YTM); guided missile ship (AVM); tenders (AV, AVP, YDT); crane and service vessels (AB, YD, YSD); miscellaneous (AG, AW, PYC, YAG, YHB, YPD); aviation supply ship (AVS); floating dry dock and shop craft (AFDB, AFDL, AFDM, ARD, YFD, YRDH, YRDM); naval lighters (AVC, YC, YCK, YCV, YCF, YF, YFB, YFN, YFNG, YFNX, YFP, YFR, YFRN, YFT, YG, YGN, YFND, YFNB, YVC, YRL); naval barges (YO, YOG, YOGN, YON, YOS, YDK, YR, YRB, YRS, YTT, YW, YAN), naval dredge (YN).

(c) *Coast guard patrol and service vessels and craft.* Submarine repair and berthing barge (YRB); labor transportation barracks ship (APL); Coast Guard cutter ((CGC); gun boat (WPG); patrol craft (WPC, WSC, WPG); sea plane tender (WAVP); ice breaker (WAGB); cargo ship (WAK); buoy tenders and boats (WAGL, WD); cable layer (WARC); lightship (WAL); CG tugs (WAT, WYT); radio ship (WAGR); special vessel (WIX); auxiliary vessels (WAC, WAGE). Other Coast Guard patrol or rescue craft over 300 horse power capacity.

(d) *Air Force crash rescue boat.*

(e) *Army vessels and craft.* Transportation Corps tug—100 ft. (LT), 65 ft. (ST); T-boat, Q-boat, J-boat, B-boat; barges (BG, BC, BR, BK, BSP, BSPI, BKI, BCF, BBL, BARC); cranes, floating (BD); dry dock, floating (FDL); repair ship, floating (FMS); trainer, amphibious 20 ton wheeled tow boat, inland waterway (LTI, STI).

§ 75.8 *Definition of aircraft.* As used in § 75.2, Category 10, the term aircraft shall include piloted, pilotless, robot and lighter-than-air aircraft of all types, military and civilian.

§ 75.9 *Cathode ray tubes being shipped with radar.* As used in § 75.2, Category 11 (a), applications for license to ship radar equipment may include cathode ray tubes installed in or intended for use in such equipment provided the tubes are being shipped with such equipment. (If shipped separately, information concerning licensing requirements for cathode ray tubes should be obtained from the Bureau of Foreign Commerce, Department of Commerce.)

§ 75.10 *Forgings, castings and machined bodies.* Forgings, castings, extrusions and machined bodies of any of the articles enumerated in the proclamation which have reached such a stage in manufacture that they are clearly identifiable as such articles are considered to constitute arms, ammunition, and implements of war for the purposes of section 12 of the joint resolution.

REGISTRATION

§ 75.11 *Requirement for registration.* Persons engaged in the business, within the United States, its territories or possessions, of manufacturing, exporting or importing articles enumerated in the proclamation or as defined in the regulations in this part (§§ 75.2 to 75.9) are required to register with the Secretary of State.

§ 75.12 *Production for experimental or scientific purposes.* The fabrication of arms, ammunition and implements of war for experimental or scientific purposes including research and development is not considered as manufacture for the purposes of section 12 of the joint resolution.

§ 75.13 *Application for registration.* Applications for registration shall be submitted to the Secretary of State on forms prescribed by him and shall be accompanied by a registration fee of $100 in the form of a postal money order or a certified check payable to the Secretary of State.

§ 75.14 *Certificate of registration.* Upon receipt of an application for registration properly executed, accompanied by the registration fee, the Secretary of State shall issue to the applicant a certificate of registration valid for five years. Such certificate does not constitute an authorization to export or import. (See § 75.17.) Certificates of registration are not transferable. No portion of the registration fee may be refunded. Certificates of registration are renewable for further periods of five years upon submission of an application for registration properly executed and the payment for each renewal of a fee of $100.

§ 75.15 *Notification of changes in information furnished by registrants.* Registered persons shall notify the Secretary of State of any change in the information set forth in their applications for registration. Upon receipt of such information an amended certificate of registration including this information will be issued if appropriate. An amended certificate of registration will be issued without charge in such cases and will remain valid until the date of expiration of the original certificate.

§ 75.16 *Records of manufacture, exportation and importation.* (a) Persons required to register shall maintain, subject to the inspection of the Secretary of State, or any person or persons designated by him, permanent records in which shall be kept the quantity and estimated values of the articles manufactured by them for export and similar records of articles imported or exported by them. The records of articles imported shall, in addition, contain information as to the consignor and the country of origin. The records of articles exported shall, in addition, contain information as to the source of supply, consignee, purchaser, and the initial and ultimate destination of each shipment. These records shall also contain orders, quotations and other papers relating to exports or imports or proposed exports or imports.

(b) Special agents of the Department of State and any United States Customs agents are hereby designated as the representatives of the Secretary of State for the purpose of this section.

LICENSES

§ 75.17 *Application for license.* Persons who intend to export from or import into the United States, its territories or possessions any of the articles enumerated in the proclamation or any component, part, accessory, attachment or related item as defined in these regulations, shall make application for license to the Secretary of State on the forms prescribed by him and obtain a license covering any such articles prior to exportation or importation.

§ 75.18 *Export licenses.* The Secretary of State will issue export licenses on the basis of applications therefor, unless a proposed exportation would be in violation of a law of the United States, or any regulations issued pursuant thereto, or a treaty to which the United States is a party, in which case a license shall not be issued. Furthermore, an export license shall not be issued in any case when it shall have been determined under the authority of the Export Control Act of 1949 (Public Law 11, 81st Congress), as amended, that the proposed exportation would not further the foreign policy of the United States nor be in the interest of the national security. Prior to the issuance of an export license, the Secretary of State may also require documentary evidence pertinent to the proposed transaction.

§ 75.19 *Import licenses.* The Secretary of State will issue import licenses, on the basis of applications therefor, unless a proposed importation would be in violation of a law of the United States, or any regulations issued pursuant thereto, or a treaty to which the United States is a party, in which case a license shall not be issued. Prior to the issuance of an import license, the Secretary of State may also require evidence pertinent to the proposed transaction.

§ 75.20 *Intransit licenses.* Articles to be moved intransit through the United States, its territories or possessions shall require both an import and an export license. However, arms, ammunition and implements of war entering or leaving a port of the United States, intransit through continental United States to a foreign country, will not be considered as imported or exported within the meaning of section 12 of the joint resolution if such articles are consigned from any place in a foreign country whose territory is contiguous to that of the United States to any other place in the same foreign country.

§ 75.21 *Validity and terms of licenses.* Export and import licenses are valid for six months from the date of issuance unless a different period of validity is stated thereon. Licenses are not transferable, and are subject to revocation, suspension or revision without notice. Licenses which have been revoked or which have expired must be returned immediately to the Secretary of State.

§ 75.22 *Amendments and alterations.* No amendment or alteration of a license may be made except by the Secretary of State, or by collectors of customs or postmasters when specifically authorized to do so by the Secretary of State.

§ 75.23 *Ports of exit or entry.* Applications for license shall show the proposed port or ports of exit or entry. If shipping arrangements subsequent to the issuance of the license necessitate a change of ports, no amendment of the license in such case shall be necessary but the Secretary of State must be notified of this change.

§ 75.24 *Country of ultimate destination.* The country designated on an application for license to export as the country of ultimate destination must be the country wherein the articles being exported are to be used or consumed, not a country receiving the shipment in transit. If it is the intention of the exporter that the articles being exported and consigned to one country are to be transshipped to another country or are to pass through the hands of an intermediate consignee in a foreign country, this fact must be clearly indicated on the license application and the Secretary of State must be informed prior to shipment of all the relevant facts pertaining to such transshipment.

§ 75.25 *Exportation of arms, ammunition and implements of war to Cuba.* Article II of the convention between the United States and Cuba to suppress smuggling, signed at Habana March 11, 1926, reads in part as follows (Treaty Series 739; 44 Stat. 2403):

> The High Contracting Parties agree that clearance of shipments of merchandise by water, air, or land, from any of the ports of either country to a port of entry of the other country, shall be denied when such shipment comprises articles the importation of which is prohibited or restricted in the country to which such shipment is destined, unless in this last case there has been a compliance with the requisites demanded by the law of both countries.

The Secretary of State will permit the exportation to Cuba of the articles listed in the proclamation only when applications for license to export these articles bear the stamp of approval of the Cuban Embassy in Washington. In such cases, the original, duplicate, and triplicate of the application shall be forwarded to the Cuban Embassy by the applicant for stamping and transmission to the Department by the Cuban Embassy.

§ 75.26 *Licenses filed with collectors of customs.* Export or import licenses shall be filed prior to exportation or importation with the collector of customs at the port through which the shipment authorized is being made. Shippers' export declarations (United States Department of Commerce Form 7525-V) must also be filed with and authenticated by the collector before the commodities are exported or imported. (See also § 75.28.)

§ 75.27 *Shippers' export declaration.* The shippers' export declaration (United States Department of Commerce Form 7525-V), covering arms, ammunition and implements of war for which an export license is required, must contain the same information in regard to the description, destination and value of the articles to be exported as that which appears on the application for license. If the person designated on the export declaration as the actual shipper of the goods is not the person to whom the export license has been issued by the Secretary of State, the name of this shipper should appear on the export license as that of the consignor in the United States.

§ 75.28 *Shipment by parcel post.* Export and import licenses for articles which are being transported by mail shall be filed with the postmaster at the post office where the article is mailed or received.

§ 75.29 *National Firearms Act; Federal Firearms Act; Federal Explosives Act.* (a) The provisions of the regulations in this part shall be considered as binding, in addition to, and not in lieu of, those established under the provisions of the National Firearms Act, approved by the President June 26, 1934 (48 Stat. 1236; Subchapter B, Chapter 25 and Part VIII, Chapter 27, Title 26, U. S. C.), as amended April 10, 1936 (49 Stat. 1192), June 16, 1938 (52 Stat. 756), August 11, 1945 (59 Stat. 531), and Public Law 353, 82d Congress, 2d Session; under the provisions of the Federal Firearms Act, approved by the President June 30, 1938 (52 Stat. 1250; 15 U. S. C. 901-909), as amended March 10, 1947 (61 Stat. 11), August 6, 1939 (53 Stat. 1222), and February 7, 1950 (64 Stat. 3); and under the provisions of the Federal Explosives Act, approved by the President October 6, 1917 (40 Stat. 385; 50 U. S. C. ch. 8), as amended December 26, 1941 (55 Stat. 863; 50 U. S. C. ch. 8).

(b) The National Firearms Act imposes certain taxes upon manufacturers, importers, and dealers in certain firearms; taxes upon the making of certain firearms, and taxes on transfers of certain firearms. The term "firearm", as used in this act, includes "a shotgun or rifle having a barrel of less than eighteen inches in length, or any other weapon, except a pistol or revolver, from which a shot is discharged by an explosive if such weapon is capable of being concealed on the person, or a machine gun, and includes a muffler or silencer for any firearm whether or not such firearm is included within the foregoing definition, but does not include any rifle which is within the foregoing provisions solely by reason of the length of its barrel if the caliber of such rifle is .22 or smaller and if its barrel is sixteen inches or more in length."

(c) The Federal Firearms Act applies to manufacturers and dealers who are engaged in interstate or foreign commerce in firearms and ammunition. The term "firearm", as used in this act, means "any weapon, by whatever name known, which is designed to expel a projectile or projectiles by the action of an explosive and a firearm muffler or firearm silencer, or any part or parts of such weapon"; and the term "ammunition" includes "all pistol or revolver ammunition. It shall not include shotgun shells, metallic ammunition suitable for use only in rifles, or any .22 caliber rim fire ammunition."

(d) The Federal Explosives Act is applicable to the manufacture, distribution, storage, use, and possession of explosives in time of war. The term "explosives", as used in this act, means "gunpowders, powders used for blasting, all forms of high explosives, blasting materials, fuzes (other than electric circuit breakers), detonators, and other detonating agents, smokeless powders, and any chemical compounds or mechanical mixture that contains any oxidizing and combustible units, or other ingredients, in such proportions, quantities, or packing that ignition by fire, by friction, by concussion, by percussion, or by detonation of the compound or mixture or any part thereof may cause an explosion".

(e) Rules and regulations for the enforcement of the National Firearms Act and the Federal Firearms Act are prescribed by the Commissioner of Internal Revenue, with the approval of the Secretary of the Treasury. Rules and regulations for the enforcement of the Federal Explosives Act are prescribed by the Director of the Bureau of Mines, Department of the Interior.

§ 75.30 *Foreign trade zones.* For the purpose of the regulations in this part the foreign trade zones of the United States have no special status but are considered as an integral part of the United States. Accordingly, persons who intend to ship articles into foreign trade zones of the United States (established pursuant to 19 U. S. C. 81c Supp. 5) shall submit application for import license as described in § 75.17, and obtain license therefor, prior to the entry of such articles. Persons who intend to ship such articles from foreign trade zones to foreign destinations shall submit application for export license, as described in § 75.18, and obtain a license therefor, prior to shipment therefrom.

§ 75.31 *Export of vessels of war.* The transfer of a vessel of war as defined in § 75.7, from United States registry to foreign registry, and the registration of an undocumented vessel of war under a foreign flag shall be considered an exportation for which a license is required. The provisions of the regulations in this part shall be considered as binding in addition to and not in lieu of the provisions of the United States Shipping Act of 1916, as amended (46 U. S. C. 835). United States Maritime Administration approval is required prior to the sale and/or transfer to alien ownership, registry and/or flag of vessels of war. The United States registry of a documented vessel is cancelled under the regulations of the Maritime Administration when such vessel is sold to a purchaser for use under foreign registry.

§ 75.32 *Repairs or alterations of vessels.* Operators of foreign vessels entering the territorial waters of the United States for repairs or alterations shall obtain an export license for articles enumerated in the proclamation and as defined in these regulations which are required in connection with such repairs or alterations.

§ 75.33 *Saving clause.* Outstanding licenses or certificates of registration issued pursuant to the regulations of June 2, 1942, as amended, shall remain valid for the same period as if the regulations in this part had not been promulgated.

GENERAL PROVISIONS AND EXEMPTIONS

§ 75.34 *Shipment by or to the United States Government.* The exportation of arms, ammunition, and implements of war by the United States Government or any agency thereof is not subject to the provisions of the joint resolution and therefore an export license is not required. The importation of arms, ammunition, and implements of war consigned to the United States Government or any agency thereof is not subject to the provisions of the joint resolution and therefore an import license is not required.

§ 75.35 *Authorization to collectors of customs to waive presentation of license document under prescribed conditions.* Customs officers are authorized in their discretion to permit arms, ammunition and implements of war to enter and depart from the United States without requiring the presentation of a license under certain conditions as set forth in §§ 75.36 to 75.42 inclusive, provided the prescribed conditions are met and there is satisfactory evidence that all other requirements are being or will be adhered to. In case of doubt as to compliance with any of the exemptions, collectors of customs should refer the matter to the Office of Munitions Control, Department of State, for determination as to whether such exemption applies.

§ 75.36 *Canadian shipments.* (a) Collectors of customs may release shipments of arms, ammunition and implements of war to or from Canada without requiring the presentation of an individual license provided a UAC release certificate (form DSP–21) covering each shipment has been properly executed and transmitted to the Secretary of State and a copy thereof is presented to the collector of customs at the port of entry or exit.

(b) This procedure furthermore must not be used in connection with intransit shipments through the United States to or from Canada. Applications for both import and export licenses must be submitted to the Department in connection with each such shipment.

(c) The exportations to Canada of parts, components and accessories for rifles, carbines, pistols and revolvers with the exception of barrels and breech mechanisms shall not be subject to the provisions of paragraph (a) of this section provided a copy of the invoice or other document adequately describing the shipment and giving the name of the purchaser and the terms of sale is mailed to the Department before shipment is made. If such copy is furnished, presentation of individual license covering such shipments will be waived.

(d) Arms, ammunition and implements of war entering Canada from a country other than the United States and shipped to the United States within one year after entry into Canada may not be imported into the United States under the UAC release certificate procedure described above, but individual license applications therefor must be submitted to the Secretary of State.

§ 75.37 *United States aircraft on temporary sojourn abroad.* (a) Collectors of customs may permit aircraft flown or shipped from the United States for a temporary sojourn abroad of not to exceed six months' duration to depart from the United States without requiring the presentation of an export license issued by the Secretary of State provided the collector of customs at the port of exit is satisfied that the conditions set forth in paragraph (b) of this section have been met.

(b) Owners or operators of aircraft departing from the United States for temporary sojourn abroad under the provisions of § 75.34 shall file an affidavit in the form indicated below and must satisfy the collector of customs that:

(1) The aircraft will not be sold or disposed of;

(2) The aircraft will be returned to the United States within six months;

(3) It will be operated only by a United States licensed pilot, except on demonstration flights;

(4) It will remain under United States registry while abroad.

(c) The requirement of an affidavit may be waived for personal type aircraft (one to five-seaters) and executive type aircraft (privately owned non-revenue), provided the owner-operator of such aircraft submits evidence satisfactory to the collector of customs that subparagraphs (1) through (4) of paragraph (b) of this section will be complied with. Such aircraft may then be permitted to leave the United States for a temporary sojourn abroad not to exceed six (6) months duration without the necessity of submitting an individual license or affidavit therefor.

(d) When an affidavit is required, it must be submitted in the following form:

AFFIDAVIT OF TEMPORARY SOJOURN

COUNTY OF
STATE OF ss.

The undersigned, being duly sworn, says that he is the (owner) (operator) of an aircraft identified as a _____ bearing markings _____; that it is departing from the United States on a temporary sojourn abroad not to exceed six (6) months; that he is the holder of CAB letter of registration for this aircraft dated _____; that the aircraft's ultimate destination outside the United States is _____; that it will reenter the United States through the port of _____ on or about _____; that he will not dispose of the aircraft, its parts, components or accessories in any foreign country nor permit its use in military activities; that it will be operated by a U. S. licensed pilot (except in demonstration flights) while abroad; that he will not change its U. S. registration while abroad; that if the aircraft or any of its parts is to be sold or disposed of in a foreign country, it will be immediately returned to the U. S. and an export license obtained; that he will not transport in such aircraft arms, ammunition or implements of war as defined by Presidential proclamation unless authorized by the Secretary of State; and that the purpose of the temporary sojourn abroad is as follows:

_____

_____

This statement is given to U. S. Customs authority at _____ or the Secretary of State pursuant to regulations of the Secretary of State, Title 22, Code of Federal Regulations section 75.37 in support of claim for exemp-

tion from the Department of State requirements relating to licenses to export aircraft enumerated in the Presidential proclamation.

Signed _____
(Owner-operator)

Address _____

_____

Subscribed and sworn to before me at _____ this ____ day of _____, 19__.

_____
(Signature and title of officer)

(e) When a copy of the affidavit of temporary sojourn (above form) is accepted by the customs officer at the port of exit it shall be endorsed by him and returned to the owner or operator prior to the departure of the airplane. Upon the return of the aircraft to the United States, the endorsed copy of the affidavit must be surrendered to the collector of customs at the port of reentry. If the port of reentry is not the same as that from which the aircraft departed the customs officer shall forward the surrendered copy of the affidavit to the customs authority at the port from which the aircraft originally departed, noting thereon the date of reentry. The affidavits shall be retained by the collectors of customs for possible future examination.

§ 75.38 *Aircraft of foreign registry entering the United States.* (a) Collectors of customs are authorized to permit aircraft of foreign registry to enter and depart from the United States without requiring the presentation of an individual license provided it is established to their satisfaction that the country of ultimate destination is the same as the country of origin and that the airplane will not be sold or disposed of in the United States and will not remain in the United States in excess of a period of six months.

(b) This section does not apply to aircraft returning to the United States for major overhaul and reexport. The provisions of § 75.39 are applicable to such aircraft.

§ 75.39 *Articles returned to the United States for repair or overhaul and reexport.* Collectors of customs are authorized on presentation of satisfactory evidence to permit arms, ammunition, and implements of war to enter the United States which have been legally exported from the United States, and which are returned to the United States worn or damaged for repair and reexport without requiring the presentation of an individual import license. An individual export license, however, is required before such articles may be reexported. (The collector of customs at the port of entry requires a temporary importation bond for American as well as foreign articles entered under the provisions of this section.)

§ 75.40 *Antique arms and implements of war.* Collectors of customs are authorized on presentation of satisfactory evidence to permit antique arms and implements of war, components, parts, accessories and attachments therefor enumerated in the proclamation which are more than one hundred years old to enter the United States or to depart therefrom without requiring the presentation of an individual license.

§ 75.41 *Arms carried on person or in baggage.* Collectors of customs are authorized on presentation of satisfactory evidence to permit rifles, carbines, revolvers, or pistols and ammunition therefor to enter the United States or depart therefrom without requiring the presentation of an individual license when these articles enter or leave the United States on the person of an individual or in his baggage, and are intended exclusively for the personal use of that individual for sporting or scientific purposes or for personal protection. No more than three arms and no more than five hundred cartridges shall in any case be carried from or into the United States by an individual under the provisions of this section.

§ 75.42 *Arms for the individual use of members of the armed forces.* (a) Collectors of customs are authorized to permit members of the United States armed forces, presenting written authorization from their commanding officer, to ship or bring into the United States war trophies and souvenirs consisting of rifles, carbines, revolvers, pistols, and ammunition therefor, without requiring the presentation of an individual license.

(b) Collectors of customs are authorized to permit rifles, carbines, revolvers and pistols in single units to leave the United States without requiring the presentation of a license provided they are consigned to individual members of the armed forces of the United States through army, air force, or navy postal services (APO or FPO).

(c) Collectors of customs are authorized to permit components and parts of rifles, carbines, revolvers and pistols to leave the United States without requiring the presentation of a license provided they are consigned to individual members of the armed forces of the United States through army, air force, or navy postal services (APO's or FPO's) and provided that the value of any such consignment does not exceed $25.

VIOLATIONS AND PENALTIES

§ 75.43 *Violations in general.* Section 12 of the joint resolution of Congress approved November 4, 1939 provides in effect that it shall be unlawful for any person to export or attempt to export from the United States any of those articles defined as arms, ammunition and implements of war by proclamation, to import or attempt to import into the United States, any of the arms, ammunition, and implements of war enumerated in the proclamation without first having complied with the regulations in this part and having obtained a license therefor.

§ 75.44 *Penalties for violations.* Section 15 of the joint resolution approved November 4, 1939, provided that: "In every case of the violation of any of the provisions of this joint resolution or of any rule or regulation issued pursuant thereto where a specific penalty is not herein provided, such violator or violators, upon conviction, shall be fined not more than $10,000 or imprisoned not more than two years, or both."

(54 Stat. 11; 22 U. S. C. 455)

§ 75.45 *Authority of collectors of customs.* The sections of the United States Code cited below provide in effect as follows:

(a) Collectors of customs are authorized to take appropriate action to insure observance of the regulations in this part as to the importation, or attempt to import, or exportation, or attempt to export, arms, ammunition and implements of war, whether or not authorized by the licenses issued under the regulations in this part, including, but not limited to, inspection and loading or unloading from carriers.

(b) When a license is presented to a collector of customs authorizing the exportation or importation of arms, ammunition, and implements of war, together with such other documents as may be required by customs regulations, the collector may require the production of other documents and information relating to the proposed exportation or importation including invoices, orders, packing lists, shipping documents, correspondence, instructions, and other relevant information and documents.

(Sec. 1, 40 Stat. 223, as amended, R. S. 3062, as amended, secs. 510–512, 595, 46 Stat. 733, 734, 752, sec. 1, 62 Stat. 716; 22 U. S. C. 401, 19 U. S. C. 483, 1510–1512, 1595, 18 U. S. C. Sup. 545)

§ 75.46 *Seizure and forfeiture.* The sections of the United States Code cited below provide in effect as follows: Whenever an attempt is made to import, or bring into the United States, or to export, or ship from, or take out of the United States, any arms, ammunition, and implements of war, in violation of law, the several collectors of customs may seize and detain any such arms, ammunition, and implements of war, and the vessel or vehicle containing the same, and retain possession thereof until released or disposed of as directed by law.

(Sec. 1, 40 Stat. 223, as amended, R. S. 3062, as amended, sec. 1, 62 Stat. 716; 22 U. S. C. 401, 19 U. S. C. 483, 18 U. S. C. Sup. 545)

For the Secretary of State.

SCOTT MCLEOD,
Administrator, Bureau of Security and Consular Affairs.

[F. R. Doc. 53-10042; Filed, Nov. 30, 1953; 8:52 a. m.]

TITLE 24—HOUSING AND HOUSING CREDIT

Chapter II — Federal Housing Administration, Housing and Home Finance Agency

Subchapter B—Property Improvement Loans

PART 204—TITLE I MORTGAGE INSURANCE; RIGHTS AND OBLIGATIONS OF MORTGAGEE UNDER INSURANCE CONTRACT

PREMIUMS

1. Section 204.4 (18 F. R. 7295, November 18, 1953) is hereby corrected by deleting paragraph (d).

2. Section 204.5 is hereby amended to read as follows:

§ 204.5 *Pro rata refund in event of prepayment.* Upon such prepayment the contract of insurance shall terminate and the Commissioner will refund to the mortgagee for the account of the mortgagor an amount equal to the pro rata portion of the current annual mortgage insurance premium theretofore paid which is applicable to the portion of the year subsequent to such payment, computed from the first day of the month following the month in which such prepayment occurs: *Provided*, That no such refund will be made in any case where the prepayment occurs in the twelfth month of the premium year.

(Sec. 2, 48 Stat. 1246, as amended; 12 U. S. C. 1703. Interprets or applies sec. 102, 64 Stat. 48; 12 U. S. C. 1706c)

Issued at Washington, D. C., as of November 10, 1953.

WALTER L. GREENE,
Acting Federal Housing Commissioner.

[F. R. Doc. 53-10015; Filed, Nov. 30, 1953; 8:46 a. m.]

TITLE 15—COMMERCE AND FOREIGN TRADE

Chapter III—Bureau of Foreign and Domestic Commerce, Department of Commerce

Subchapter C—Bureau of Foreign Commerce

[6th Gen. Revision of Export Regs., Amdt. P. L. 63 [1]]

PART 399—POSITIVE LIST OF COMMODITIES AND RELATED MATTERS

MISCELLANEOUS AMENDMENTS

1. Section 399.1 *Appendix A—Positive List of Commodities* is amended in the following particulars:

The revised entries set forth below are substituted for entries presently on the Positive List. Where the Positive List contains more than one entry under a single Schedule B number, the entry to be superseded is identified by a numerical reference enclosed in parentheses following the commodity description in the revised entry.

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar-value limits	Validated license required
300600	Cotton pulp [12]	Lb.	TEXT	100	RO
	Paper, paperboard, and products, n. e. c.:				
489900	The following papers when 0.0035 inches or less in thickness: cable paper; rope paper tape, electrical insulating; and other paper and tissue for dielectric use, coated or uncoated, n. e. c. (specify by name and indicate thickness).[22]	Lb.	PULP	15	RO
501100	Petroleum, crude (barrel of 42 gallons) [10]	Bbl.	PETR 1	1,000	RO
501200	Natural gasoline (barrel of 42 gallons) [10]	Bbl.	PETR 1	†25	RO
	Unfinished oils for further refining:				
501350	Topped crude (barrel of 42 gallons) [10]	Bbl.	PETR 1	1,000	RO
501390	Other unfinished oils for further refining (barrel of 42 gallons).[10]	Bbl.	PETR 1	1,000	RO
	Refined oils:				
	Motor fuel and gasoline (report octane rating):				
501700	Automotive and other motor fuels and gasoline (barrel of 42 gallons).[10]	Bbl.	PETR 1	†25	RO
501900	Naphtha in containers of 4 ounces or less. (3) [10]	Bbl.	PETR 1	300	RO
501900	Naphtha in containers over 4 ounces; mineral spirits; solvents; and other finished light products, n. e. c. (barrel of 42 gallons). (4) [10]	Bbl.	PETR 1	†25	RO
502700	Kerosene, except distillate fuel oil (barrel of 42 gallons) (report jet fuel in 829920).[10]	Bbl.	PETR 1	†25	RO
503000	Gas oil and distillate fuel oil (barrel of 42 gallons) (report heavy Diesel fuel oil in 503100).[10]	Bbl.	PETR 1	†25	RO
503100	Residual fuel oil (including heavy Diesel fuel oil) (barrel of 42 gallons) (report light Diesel fuel oil in 503000).[10]	Bbl.	PETR 1	1,000	RO
	Refined oils—Continued				
505900	Petroleum products, n. e. c. (specify by name) (report finished petroleum sprays in 820590 and 820600; finished blended gasolines in 501610-501700; and jet fuels in 829920).[10]	Lb or Gal.	PETR	25	RO
	Asbestos:				
545600	Brake lining, molded and semimolded.[10]	Lb.	TRAN 6	500	R
545700	Brake lining, woven [10]	Lin. ft.	TRAN 6	500	R
545800	Clutch facing, molded, semimolded and woven, including clutch lining.[10]	No.	TRAN 6	500	R
	Pipe, tubes, and tubing, n. e. c. (report pipe assemblies specially fabricated for particular machines or equipment as parts of such machines or equipment):				
	Pressure tubes and tubing (including boiler tubes and tubing):				
606010	Carbon steel, seamless [10]	Lb.	STEE 12	100	RO
606030	Carbon steel, welded [10]	Lb.	STEE 12	100	RO
606110	Alloy steel, except stainless, seamless (report stainless in 607500).[10]	Lb.	STEE 12	100	RO
606130	Alloy steel, except stainless, welded (report stainless in 607500).[10]	Lb.	STEE 12	100	RO
	Oil country pipe (including drill pipe, casing and tubing) (see § 399.2, Int. 1):				
606210	Seamless, carbon steel [10]	Lb.	STEE 15	100	RO
606230	Seamless, alloy steel, except stainless [10]	Lb.	STEE 15	100	RO
606240	Welded, carbon steel [10]	Lb.	STEE 16	100	RO
606260	Welded, alloy steel, except stainless [10]	Lb.	STEE 16	100	RO
	Line pipe, carbon and alloy steel, except stainless (see § 399.2, Int. 1):				
606270	Seamless, carbon steel. (1)[10]	Lb.	STEE 15	100	RO
606270	Seamless, alloy steel, except stainless. (2)[10]	Lb.	STEE 15	100	RO
606280	Welded, carbon steel. (1)[10]	Lb.	STEE 16	100	RO
606280	Welded, alloy steel, except stainless. (2)[10]	Lb.	STEE 16	100	RO
	Standard pipe, carbon and alloy steel, except stainless:				
606310	Seamless, black [10]	Lb.	STEE	100	RO
606330	Seamless, galvanized [10]	Lb.	STEE 17	100	RO
606360	Welded, black [10]	Lb.	STEE	100	RO
606380	Welded, galvanized [10]	Lb.	STEE	1,000	RO
607410	Mechanical tubing, carbon steel [10]	Lb.	STEE 17	100	RO
607430	Mechanical tubing, alloy steel, except stainless [10]	Lb.	STEE 17	100	RO
607500	Pipe and tubing, nickel-bearing stainless steel. (1) [10]	Lb.	STEE 17	100	RO
607500	Pipe and tubing, non-nickel-bearing stainless steel. (2).[10]	Lb.	STEE 17	100	RO
607710	Pipe and tubing, carbon steel, n. e. c., (except specially fabricated single units (report pipe assemblies specially fabricated for particular machines or equipment as parts of such machines or equipment). (1).[10]	Lb.	STEE 17	100	RO
607710	Pipe and tubing, alloy steel, except stainless, n. e. c. (2).[10]	Lb.	STEE 17	100	RO
	Steel wire, n. e. c. (all round, shaped, and flat wire regardless of use) (report electrical insulated wire and cable in 709810-709885):				
608120	Uncoated wire, carbon steel, except strapping wire (report bag and bale ties in 619067).[10]	Lb.	STEE	100	RO
608130	Uncoated wire, alloy steel, except stainless [10]	Lb.	STEE	100	RO
608150	Uncoated wire, nickel-bearing stainless steel. (1) [10]	Lb.	STEE	100	RO
608150	Uncoated wire, non-nickel-bearing stainless steel. (2) [10]	Lb.	STEE	100	RO
608200	Galvanized wire (all steel grades) (report fencing and netting in 619047; barbed and twisted wire in 608300; and wire strand in 619065).[10]	Lb.	STEE	100	RO
	Coated wire, except galvanized (all steel grades):				
608210	Carbon steel. (1) [10]	Lb.	STEE	1,000	RO
608210	Alloy steel, except stainless. (2) [10]	Lb.	STEE	100	RO
608210	Nickel-bearing stainless steel. (3) [10]	Lb.	STEE	100	RO
608210	Non-nickel-bearing stainless steel. (4) [10]	Lb.	STEE	100	RO
608300	Barbed wire.[10]	Lb.	STEE	100	RO
	Steel wire, n. e. c.:				
609190	Musical instrument wire; and spring wire, piano grade. (1) [10]	Lb.	STEE	100	RO
609190	Other steel wire, n. e. c. (2) [10]	Lb.	STEE	500	RO
	Tool bit blanks and dies, and inserts for tool and rock drill bits:				
617903	Tungsten carbide tool bit blanks and dies. (1) [10] [13]	Lb.	TOOL	50	RO
617903★	Tungsten carbide inserts for rock drill bits. (2) [10]	Lb.	MINE	50	RO
617903★	Tungsten carbide inserts for other tools including die inserts. (3) [10]	Lb.	TOOL	50	RO
617905	Molybdenum tool bit blanks.[10]	Lb.	TOOL	50	RO

See footnotes at end of table.

[1] This amendment was published in Current Export Bulletin No. 719, dated November 19, 1953.

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar-value limits	Validated license required
	Pipe fittings not specially fabricated for particular machines or equipment:				
618951	Steel pipe fittings, stainless or alloy (specify by name and grade of steel).[10]	Lb.	STEE	100	RO
618957	Copper-base alloy pipe fittings (including brass and bronze) (specify by name).[1 10]	Lb.	NONF 14	500	RO
618959	Aluminum pipe fittings. (1)[1 10]	Lb.	NONF	500	RO
618959	Copper pipe fittings. (2)[1 10]	Lb.	NONF 14	500	RO
618959	Lead pipe fittings. (3)[10]	Lb.	NONF	500	RO
618959	Zinc pipe fittings. (4)[10]	Lb.	NONF	500	RO
	Welding rods and wires:				
619031	Other iron and steel, electric, except carbon steel. (2 and 3)[23]	Lb.	STEE	100	RO
619033	Iron and steel, nonelectric, except carbon steel. (1 and 2)[23]	Lb.	STEE	100	RO
619034	Brazing solder (spelter type). (1)[10]	Lb.	NONF	100	RO
619034	Brass and bronze welding electrodes and welding rods (including phosphor bronze). (2)[10]	Lb.	NONF 4	100	RO
619034	Phosphor copper brazing rods and wires. (3)[10]	Lb.	NONF 4	100	RO
619039	Aluminum and aluminum-base alloys. (1)[10]	Lb.	NONF	100	RO
619039	Copper. (3)[10]	Lb.	NONF 4	100	RO
619039	Tin. (5)[10]	Lb.	NONF 1	100	RO
619039	Lead and lead base (specify by name and metal content) (report lead solder in 651200). (7)[10]	Lb.	NONF	500	RO
619039	Zinc[10 24]	Lb.	NONF	100	RO
	Wire products, n. e. c. (report wire nails, staples, and spikes in 618267-618273):				
	Wire cloth:				
	Insect screen cloth:				
619052	Aluminum[10]	Sq. ft. & lb.	NONF	100	RO
	Metal powders:				
619140	Phosphor copper (specify copper content). (4)[1]	Lb.	NONF	100	RO
619152★	Magnesium[20]	Lb.	MINL	100	RO
619159★	Zirconium. (10)[6 20]	Lb.	NONF	25	RO
	Foil and leaf (less than 0.006 inch in thickness) (report paper-backed foil in 486100):				
619230	Aluminum.[10]	Lb.	NONF	100	RO
619250	Copper or copper-base alloy foil and leaf. (2)[10]	Lb.	NONF 15	100	RO
630050★	Aluminum scrap (new and old)[1]	Lb.	NONF	500	RO
630301	Aluminum sheets, corrugated. (1)[10]	Lb.	NONF	100	RO
630301★	Other aluminum plates and sheets, flat and coiled (0.006 inch and over in thickness). (2)[10]	Lb.	NONF	100	RO
630310★	Aluminum bars and rods, rolled or drawn (3/8 inch and over) (report extruded bars and rods in 630320; aluminum bus bars in 709495).[10]	Lb.	NONF 12	100	RO
630320★	Aluminum extruded and drawn shapes and tubes, except drawn bars, rods, and wire.[10]	Lb.	NONF 12	100	RO
630610★	Aluminum wire (under 3/8 inch) and cable, bare (including aluminum cable, steel reinforced—ACSR) except welding rods and wire (specify by name) (report welding rods and wire in 619039).[10]	Lb.	NONF	100	RO
640100★	Copper matte, regulus, unrefined copper as blister or converter copper (copper content). (1)[1]	C. lb.	NONF	1,000	RO
640100★	Copper ore and concentrates (copper content). (2)[1]	C. lb.	NONF	1,000	RO
641200★	Refined copper in cathodes, billets, ingots, wire bars and other crude forms (include anodes) (report copper bars except wire bars in 642400).[1]	Lb.	NONF	1,000	RO
641300★	Copper scrap (new and old)[1]	Lb.	NONF 13	1,000	RO
642200★	Copper pipe and tubing[10]	Lb.	NONF 15	100	RO
642300★	Copper plates, sheets, and strips, including niekel-plated.[10]	Lb.	NONF 15	100	RO
642400★	Copper rods and bars, n. e. c. (report copperweld rods in 642510; copper wire bars and redrawing rods in 641200; and copper bus bars in 709495).[10]	Lb.	NONF 15	100	RO
642510★	Copper wire and cable, bare, for electrical conduction only (report electrical insulated copper wire in 709810-709885). (1)[1 10]	Lb.	NONF 16	100	RO
642510★	Copper wire and cable, bare, other than for electrical conduction (report welding rods and electrodes in 619039). (2)[1 10]	Lb.	NONF 15	100	RO
644000★	Copper-base alloy scrap (new and old)	Lb.	NONF 13	1,000	RO
644100★	Beryllium-copper ingots. (1)[1]	Lb.	NONF	300	RO
644100★	Other copper-base alloy ingots. (2)[1]	Lb.	NONF	1,000	RO
644900★	Beryllium copper bars, rods, and other crude shapes (extruded, rolled and drawn) (specify copper content). (1)[1 10]	Lb.	NONF 15	100	RO
644900★	Phosphor copper rods and bars (specify copper content. (2)[1 10]	Lb.	NONF 15	100	RO
644900★	Brass, bronze and nickel silver, or German silver, bars, rods, and other crude shapes (extruced, rolled and drawn). (3)[10]	Lb.	NONF 15	100	RO
644900★	Other copper-base alloy bars, rods, and other crude shapes (extruded, rolled and drawn). (4)[1 10]	Lb.	NONF 15	100	RO
645000★	Brass and bronze blanks. (1)[10]	Lb.	NONF	100	RO
645000★	Brass and bronze circles. (2)[10]	Lb.	NONF	100	RO
645000★	Beryllium copper plates, sheets, and strips (specify copper content). (3)[1 10]	Lb.	NONF 15	100	RO
645000★	Phosphor copper plates, sheets, and flat or coiled strip; and cupro-nickel strip (specify copper content). (4)[1 10]	Lb.	NONF 15	100	RO
645000★	Brass, bronze and nickel silver, or German silver, plates sheets, and strips. (5)[10]	Lb.	NONF 15	100	RO
645000★	Other copper-base alloy plates, sheets, and strips. (6)[1 10]	Lb.	NONF 15	100	RO
645300★	Brass and bronze pipes and tubes (pipe coils included). (1)[10]	Lb.	NONF 15	100	RO
645300★	Phosphor copper pipes and tubes (specify copper content). (2)[1 10]	Lb.	NONF 15	100	RO
645300★	Beryllium copper pipes and tubes (specify copper content). (3)[1 10]	Lb.	NONF 15	100	RO
645300★	Seamless cupro-nickel pipes and tubes (specify copper content). (4)[1 10]	Lb.	NONF 15	100	RO
645300★	Other copper-base alloy pipes and tubes (pipe coils included). (5)[1 10]	Lb.	NONF 15	100	RO
645710★	Cupro-nickel resistance wire; Dumet wire; and thermocouple wire (specify copper content). (1)[1 10]	Lb.	NONF 16	100	RO
645710★	Phosphor copper wire; cupro-nickel wire other than resistance wire; and nickel-silver wire (specify copper content). (2)[1 10]	Lb.	NONF 15	100	RO
645710★	Beryllium copper wire, bare (specify copper content). (3)[1 10]	Lb.	NONF 16	100	RO
645710★	Brass and bronze wire, bare (including phosphor bronze), for electrical conduction only. (4)[1 10]	Lb.	NONF 16	100	RO
645710★	Brass and bronze wire, bare (including phosphor bronze) other than for electrical conduction. (5)[1 10]	Lb.	NONF 15	100	RO
647913★	Beryllium copper castings, rough and semifinished (specify copper content). (2)[1]	Lb.	NONF	100	RO
647913★	Other copper-base alloy castings and forgings, rough and semifinished (specify copper content). (3)[1]	Lb.	NONF	100	RO
647950★	Other copper-base alloy semifabricated forms, n. e. c. (specify by name). (2)[1]	Lb.	NONF	100	RO
651200	Lead solder[10]	Lb.	NONF 6	500	RO
	Magnesium:				
664547★	Metal and alloys in crude form, and scrap[20]	Lb.	NINL	100	RO
664549	Semifabricated forms, n. e. c. (specify by name)[20]	Lb.	MINL	100	RO
	Titanium:				
664571	Metal and alloys in crude form, and scrap[21]	Lb.	MINL	None	RO
664573	Semifabricated forms, n. e. c. (specify by name)[21]	Lb.	MINL	None	RO
	Vanadium (report ferrovanadium and other vanadium alloying materials containing over 6 percent vanadium in 622086; chemically pure grades of vanadium in 829970):				
664586	Vanadium ores and physical concentrates (non-chemical process) (specify V_2O_5 content)[7 21]	C. lb.	MINL	None	RO
664588	Vanadium pentoxide, vanadic oxide, vanadium oxide and vanadates (except chemically pure grade) (specify V_2O_5 content).[7]	C. lb.	MINL	25	RO
	Transforming or converting apparatus, n. e. c., and parts, n. e. c.				
702420	Parts and accessories, n. e. c., specially fabricated for power and distribution transformers, 100 kilovolt amperes and over (specify by name). (1)[25]	----------	ELME 5	None	RO
	Electric bulbs and tubes (lamps), and parts (report bulb and tube blanks in 529300 and 529400):				
706305	Sealed beam headlamps suitable for mounting on automotive vehicles.[10]	No.	TRAN 6	100	R
	Radio and television apparatus:				
707607	Radio and television broadcast station transmitting equipment, and specially fabricated parts and accessories, n. e. c.[12]	----------	RARA 50	100	R

See footnotes at end of table.

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar-value limits	Validated license required
	Radio and television apparatus—Continued				
	Radio communication equipment, n. e. c. (report radar equipment in 708410; broadcast equipment in 707607; automobile and home-type radio receivers in 707635–770719):				
707613	Shipborne (maritime mobile) transmitters, receivers and transceivers (transmitter-receivers), and specially fabricated parts and accessories, n. e. c. for transmitters and transceivers.[12]	----------	RARA 50	100	RO
707617	Land-type radio communication transmitters, receivers and transceivers (transmitter-receivers), and specially fabricated parts and accessories, n. e. c. for transmitters and transceivers.[12]	----------	RARA 50	100	RO
707625	Radio beacon (beam) transmitters, and specially fabricated parts and accessories, n. e. c.[12]	----------	RARA 50	100	RO
707805	Radio and television receiving type tubes (specify by name) (report television picture receiving tubes in 707815).[12]	No.	RARA 51	25	R
707810	Radio and television transmitting type tubes (specify by name) (report television camera tubes in 707812).[12]	No.	RARA 51	50	RO
707815	Television picture receiving tubes (cathode ray), having short-image life phosphor, types P-1 and P-4 (specify by type number).[12]	No.	RARA 51	100	R
707905	Capacitors (condensers) (specify by name) [12]	No.	RARA 52	100	R
707910	Resistors (specify type) [12]	No.	RARA 52	100	R
707915	Inductors (including transformers, coils and chokes) [12]	No.	RARA 52	200	R
707916	Parts, n. e. c., specially fabricated for capacitors (condensers), resistors, inductors, transformers, and coils.[12]	----------	RARA 52	100	R
708100	Radio and television receiving set accessories, and specially fabricated parts, n. e. c. (specify type) (see § 399.2, Int. 10).[12]	----------	RARA 52	200	R
708410	Fathometers. (1)[12]	No.	SATE	None	RO
708410	Specially fabricated parts for fathometers, n. e. c. (2)[12]	----------	SATE	50	RO
708410	Hydrophones. (3)[12]	No.	RARA 53	None	RO
	Insulated wire and cable:				
709810	Building wire and cable [10]	Lb.	NONF 17	100	RO
709830	Weatherproof and slow-burning wire [10]	Lb.	NONF 17	100	RO
709855	Communication and signal wire and cable (specify by name).[10]	Lb.	NONF 17	100	RO
709860	Rubber and/or synthetic rubber-sheathed portable cord, wire and cable (specify by name).[10]	Lb.	NONF 17	100	RO
709870	Varnished-cambric insulated wire and cable, with braided, leaded, or armored finishes (specify by name).[10]	Lb.	NONF 17	100	RO
709875	Paper-insulated power cable, with leaded or armored finishes (specify by name).[10]	Lb.	NONF 17	100	RO
709885	Other insulated wire and cable, n. e. c. (specify by name). (2) [10]	Lb.	NONF 17	100	RO
	Power boilers, and parts:				
713920	Parts, n. e. c., specially fabricated for power boilers, and steam specialties, n. e. c. (report boiler tubes shipped as spares or replacements under tubular products according to material).[12]	----------	GIEQ 23	250	RO
	Internal-combustion engines, n. e. c., and parts, n. e. c.:				
715900	Marine engine accessories and specially fabricated parts, except parts for detachable outboard motors under 50 horsepower (specify Diesel or gasoline). (1) [26]	----------	TRAN	250	RO
	Power excavators and dredging machines, and parts:				
	Excavator-type power cranes and shovels, new (report used in 720160):				
720112	Crawler mounted, full revolving, convertible, 2 and 2½ cubic yard dipper capacity, new. (1) [3]	No.	CONS 1	None	RO
720112	Crawler mounted, full revolving, convertible, less than 2 cubic yard dipper capacity, new. (2) [3]	No.	CONS 1	None	RO
720117	Crawler or walker mounted, full revolving, convertible, over 2½ cubic yard dipper capacity, new.[3 13]	No.	CONS	None	RO
720122	Rubber tired mounted, including truck or wagon mounted, full revolving, convertible, designed for airborne transport, new. (1) [3 13]	No.	CONS	None	RO
720122	Other rubber tired mounted, including truck or wagon mounted, full revolving, convertible, 2 cubic yard dipper capacity and over, new. (2) [3]	No.	CONS 1	None	RO

See footnotes at end of table.

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar-value limits	Validated license required
	Power excavators and dredging machines, and parts—Con.				
	Excavator-type power cranes and shovels, new (report used in 720160)—Continued				
720122	Other rubber tired mounted, including truck or wagon mounted, full revolving, convertible, less than 2 cubic yard dipper capacity, new. (3) [3]	No.	CONS 1	None	RO
720127	Full revolving, unmounted, 2 cubic yard dipper capacity and over, new. (1) [3]	No.	CONS 1	None	RO
720127	Full revolving, unmounted, less than 2 cubic yard dipper capacity, new. (2) [3]	No.	CONS 1	None	RO
720132	Not full revolving, mounted and unmounted, new [3]	No.	CONS 1	None	R
720137	Trenchers and ditchers, new (report used in 720160) [3]	No.	CONS 1	None	R
720142	Loaders (loading machines), excavating, new (report used in 720160; nonexcavating in 720240).[3]	No.	CONS 1	None	R
	Power excavators and dredging machines, used and rebuilt (report new in 720112–720147):				
720160	Power cranes and shovels, rubber tired, mounted, including truck or wagon mounted, full revolving, designed for airborne transport, used and rebuilt. (1) [3 13]	No.	CONS	None	RO
720160	Power cranes and shovels, full revolving, mounted and unmounted, 2 cubic yards dipper capacity and over, used and rebuilt. (2) [3]	No.	CONS 1	None	RO
720160	Other power cranes and shovels, full revolving, mounted and unmounted, less than 2 cubic yards dipper capacity, used and rebuilt. (3) [3]	No.	CONS 1	None	RO
720160	Construction power cranes and shovels, not full revolving, mounted and unmounted, used and rebuilt. (4) [3]	No.	CONS 1	None	R
720160	Trenchers, ditchers, and excavating-type loaders, used and rebuilt. (5) [3]	No.	CONS 1	None	R
720210	Parts, accessories, and attachments, n. e. c., specially fabricated for power cranes and shovels designed for airborne transport, included on the Positive List under Schedule B Nos. 720122 and 720160. (1) [3 11 13]	----------	CONS	None	RO
720210	Parts, accessories, and attachments, n. e. c., specially fabricated for other power cranes and shovels 2 cubic yards dipper capacity and over, included on the Positive List under Schedule B Nos. 720112, 720117, 720122 and 720127. (2) [3]	----------	CONS 1	1,000	RO
720210	Parts, accessories, and attachments, n. e. c., specially fabricated for power cranes and shovels of less than 2 cubic yard dipper capacity included on the Positive List under Schedule B Nos. 720112, 720122, and 720127. (3) [3]	----------	CONS 1	1,000	RO
720210	Parts, accessories, and attachments, n. e. c., specially fabricated for power cranes and shovels, included on the Positive List under Schedule B No. 720132. (4) [3]	----------	CONS 1	1,000	R
720210	Parts, accessories, and attachments, n. e. c., specially fabricated for other full revolving power cranes and shovels of 2 cubic yard dipper capacity and over included on the Positive List under Schedule B No. 720160. (5) [1 3]	----------	CONS 1	1,000	RO
720210	Parts, accessories, and attachments, n. e. c., specially fabricated for other full revolving power cranes and shovels of less than 2 cubic yards dipper capacity included on the Positive List under Schedule B No. 720160. (6) [1 3]	----------	CONS 1	1,000	RO
720210	Parts, accessories and attachments, n. e. c., specially fabricated for non-full revolving power cranes and shovels included on the Positive List under Schedule B No. 720160. (7) [1 3]	----------	CONS 1	1,000	R
720210	Parts, accessories, and attachments, n. e. c., specially fabricated for trenchers, ditchers, and excavating loaders included on the Positive List under Schedule B No. 720137, 720142 and 720160 (specify by name). (8) [1 3]	----------	CONS 1	1,000	R
720210	Parts, accessories, and attachments, n. e. c., specially fabricated for dredging machines (specify by name). (9) [1]	----------	MINE	1,000	RO
720240	Loaders (loading machines), nonexcavating, new and used, and specially fabricated parts, n. e. c. (reports excavating loaders in 720142).[3]	----------	CONS 1	250	R
721510	Bituminous mixing equipment, stationary, mobile, and semiportable; bituminous paving-mix spreaders; bituminous pavers; and bituminous mixer-paver combinations.[3]	No.	CONS 1	None	RO

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar-value limits	Validated license required
721530	Bituminous combination batching-mixing outfits (prefabricated or unitized, mobile, portable, and semiportable) capacity not exceeding 175 tons per hour (report outfits of greater capacity under classifications applicable to individual components).[3]	No.	CONS 1	None	RO
721535	Concrete pavers, paving spreaders, and paving finishers, self-propelled. (1) [3]	No.	CONS 1	None	RO
721535	Contractors' concrete-placing machines, including pump, screws, and compressed-air types. (2) [3]	----------	CONS 1	None	R
721535	Concrete mixers (stationary and portable, including truck- and trailer-mounted), and concrete transport truck-mounted agitators, 18 cubic feet capacity and over. (3) [3]	No.	CONS 1	None	RO
721535	Concrete mixers (stationary and portable, including truck- and trailer-mounted), and concrete transport truck-mounted agitators, under 18 cubic feet capacity. (4) [3]	No.	CONS 1	None	R
721540	Parts and accessories, n. e. c., specially fabricated for the equipment included on the Positive List under Schedule B Nos. 721510 through 721535 for which validated license is required to R and O country destinations. (1)[3]	----------	CONS 1	100	RO
721540	Parts and accessories, n. e. c., specially fabricated for the equipment included on the Positive List under Schedule B No. 721535 for which validated license is required to R country destinations only. (2)[3]	----------	CONS 1	250	R
722012	Scrapers (report tractors in 722024, 787310-787890, according to type).[3]	No.	CONS 1	None	RO
722015	Graders, self-propelled [3]	No.	CONS 1	None	RO
722020	Soil compactors, pneumatic-tired, 10 tons and over net vehicle weight. (1)[3]	No.	CONS 1	None	RO
722020	Soil compactors, pneumatic-tired, under 10 tons net vehicle weight. (2)[3]	No.	CONS 1	None	R
722020	Road rollers, self-propelled, steel-tired types. (3)[3]	No.	CONS 1	None	R
722024	Contractors' wheel-type tractors [3]	No.	CONS 1	None	RO
	Off-the-road haulage vehicles (trucks, wagons and trailers) (report tractors separately under appropriate Schedule B number):				
722027	10 cubic yards struck load capacity and over. (1)[3]	No.	CONS 1	None	RO
722027	Under 10 cubic yards struck load capacity. (2)[3]	No.	CONS 1	None	RO
	Attachments, n. e. c., for track-laying or wheel-type tractors, or commercial trucks (specify by name) (report scrapers in 722012; off-the-road trucks, wagons and trailers in 722027; logging arches and sulkies in 722045; and agricultural attachments in 781000-787150):				
722030	Attachments, n. e. c., for track-laying tractors and contractors' wheel-type tractors, as follows: angle dozers; brush cutters or rakes; bulldozers; cable controls; cranes; dragline, clamshell, bucket and shovel excavating and loading attachments; hydraulic controls; pipe layers; rippers or rooters; snowplow blades; trailbuilders; treedozers; and winches. (1) [3]	No.	CONS 1	None	R
722040	Jacks, with lifting capacity of 10 tons and over, and specially fabricated parts, n. e. c.[3]	----------	CONS 1	50	RO
	Construction and maintenance equipment, n. e. c., and specially fabricated parts, n. e. c. (specify by name):				
722045	Pile hammers (Diesel-powered), and parts. (1) [3]	----------	CONS 1	250	R
722045	Jack, with lifting capacity of 10 tons and over; and specially fabricated parts. (2)[3]	----------	CONS 1	50	RO
722045	Subgraders and finegraders. (3) [3]	No.	CONS 1	None	RO
722045	Logging arches and sulkies for tracklaying tractors and contractors' wheel-type tractors; and rotary snowplows. (4) [3]	No.	CONS 1	None	R
722045	Specially fabricated parts for contractors' off-the-road haulage vehicles (trucks, wagons, and trailers), 10 cubic yards struck load capacity and over. (6) [3]	----------	CONS 1	100	RO
722045	Specially fabricated parts for contractors' off-the-road haulage vehicles (trucks, wagons, and trailers), under 10 cubic yard struck load capacity. (7)[3]	----------	CONS 1	100	RO
722045	Specially fabricated parts for subgraders and finegraders. (8) [3]	----------	CONS 1	100	RO
722045	Specially fabricated parts for logging arches and sulkies for use with tracklaying tractors and contractors' wheel-type tractors; and rotary snowplows. (9) [3]	----------	CONS 1	250	R
722045	Parts, accessories, and attachments, n. e. c., specially fabricated for pneumatic-tired compacters, 10 tons and over net vehicle weight. (11) [3]	----------	CONS 1	100	RO
	Construction and maintenance equipment, n. e. c., and specially fabricated parts, n. e. c. (specify by name)—Continued				
722045	Parts and accessories, n. e. c., specially fabricated for: pneumatic-tired soil compacters, under 10 tons net vehicle weight; and self-propelled, steel-tired road rollers. (12) [3]	----------	CONS 1	250	R
722045	Parts, accessories, and attachments, n. e. c., specially fabricated for scrapers and graders. (13) [3]	----------	CONS 1	100	RO
722045	Parts and accessories, n. e. c., specially fabricated for contractors' wheel-type tractors. (14) [3]	----------	CONS 1	250	R
722045	Parts and accessories, n. e. c., specially fabricated for the following attachments for track-laying tractors and contractors' wheel-type tractors: angle dozers; brush cutters or rakes; bulldozers; cable controls; cranes; dragline, clamshell, bucket and shovel excavating and loading attachments; hydraulic controls; pipe layers; rippers or rooters; snowplow blades; trailbuilders; treedozers; and winches. (15) [3]	----------	CONS 1	250	R
	Cranes (except excavator-type) and derricks, n. e. c., and parts, n. e. c.:				
723010	Railway cranes (including industrial yard, locomotive and wrecking types).[3]	No.	CONS 1	None	RO
723020	Cranes, overhead, electric traveling (elevated track, gantry, and semigantry types). [3]	No.	CONS 1	None	RO
723040	Full circle revolving cranes, 30 net tons and over maximum rated capacity. (1) [3]	No.	CONS 1	None	RO
723040	Full circle revolving cranes, 10 tons and under 30 tons maximum rated capacity. (2) [3]	No.	CONS 1	None	R
723070	Pillar cranes, 30 net tons and over maximum rated capacity. (1) [3]	No.	CONS 1	None	RO
723070	Pillar cranes, 10 tons and under 30 tons maximum rated capacity. (2) [3]	No.	CONS 1	None	R
723080	Specially fabricated parts, n. e. c., for cranes included on the Positive List under Schedule B Nos. 723010 through 723070 for which validated license is required to R and O country destinations. (1) [3]	----------	CONS 1	100	RO
723080	Specially fabricated parts, n. e. c., for cranes included on the Positive List under Schedule B Nos. 723010 through 723070 for which validated license is required to R country destinations only. (2) [3]	----------	CONS 1	250	R
	Industrial type trucks, tractors, trailers, and stackers (specially designed for materials handling in and around industrial plants, depots, docks, terminals, and similar installations), and parts:				
	Industrial type trucks, fully powered:				
725003	Straddle carriers [3]	No.	CONS 1	500	RO
725005	Internal-combustion engine powered trucks, except straddle carriers.[3]	No.	CONS 1	500	RO
725015	Electric-powered trucks [3]	No.	CONS 1	500	RO
725017	Other industrial type trucks, partially powered [3]	No.	CONS 1	500	RO
725020	Industrial type tractors (whether for towing or provided with crane booms or winches) (report standard tractors in 787710-787890).[3]	No.	CONS 1	500	RO
725050	Parts, accessories, and attachments, n. e. c., specially fabricated for fully or partially powered industrial trucks and tractors.[3]	----------	CONS 1	250	RO
	Power-driven metalworking machine tools (non-portable), and parts:				
742700	Shapers (including slotters) (report gear shapers in 741100).[13]	No.	TOOL	500	RO
743500	Surface grinding machines, gap gauge. (1) [13]	No.	TOOL	250	RO
743500	Automatic single spindle and multiple spindle surface grinders; and nonautomatic multiple spindle surface grinders (specify type). (2) [13]	No.	TOOL	250	RO
743900	External cylindrical universal grinding machines (report universal tool and cutter grinders in 744205).[13]	No.	TOOL	250	RO
744305	Honing and lapping machines, except gear [12]	No.	TOOL	250	RO
744340	Parts for metalworking machinery included on the Positive List, classified in Schedule B numbers 740005 through 744319, for which validated license is required to R and O country destinations. (1)[12]	----------	TOOL	250	RO
744340	Parts for metalworking machinery included on the Positive List under Schedule B No. 744319 for which validated license is required to R country destinations only. (2)[10]	----------	TOOL	250	R

See footnotes at end of table.

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar-value limits	Validated license required
	Accessories and attachments, n. e. c., for power-driven nonportable machine tools, n. e. c.:				
744371	Chucks for machine tools [10] [13]	No.	TOOL	250	RO
	Metal-cutting tools and specially fabricated parts, n. e. c., for machine operation (not incorporating industrial diamonds) (specify by name) (report metal-cutting dies incorporating industrial diamonds in 745503):				
744381	Broaching-cutting; gear-cutting; lapping; forming roll sets; all carbide, carbide-tipped, hard-surface steel, and tungsten carbide types; and all other metal-cutting tools (not incorporating industrial diamonds) for use on commodities included on the Positive List and classified in Schedule B numbers 740005 through 744319.[10]	----------	TOOL	250	RO
	Accessories and attachments, n. e. c., for machine tools and specially fabricated parts, n. e. c.:				
744383	Collets; arbors; boring bars 4 inches in diameter and over; screw machine tool holders; indexing face plates; and dividing heads. (1) [10]	----------	TOOL	250	RO
744383	Jigs and fixtures, military type. (2) [10]	----------	TOOL	None	RO
744383	Parts for military-type jigs and fixtures. (3) [10]	----------	TOOL	None	RO
744383	Other accessories and attachments for use on machine tools machinery included on the Positive List and classified in Schedule B numbers 740005 through 744319, except bench centers; parallels; vee blocks; tool holders; miscellaneous centers; drill pads and crotch centers; work driving dogs; tee bolts; clamps; and mandrels. (4) [10]	----------	TOOL	250	RO
744410	Metalworking presses, except hand-powered, and specially fabricated parts, n. e. c. (specify capacity in tons).[13]	----------	TOOL	500	RO
744450	Sheet and plate metalworking machines (except presses), n. e. c., and specially fabricated parts, n. e. c.[13]	----------	TOOL	500	RO
	Foundry equipment, and parts:				
745000	Molding machines: rollover type; or jolting and jarring type. (1) [13]	No.	TOOL	250	R
745110	Blast cleaning and tumbling machines for castings [13]	No.	TOOL	300	R
745805	Gas welding machines, except hand-operated, and specially fabricated parts, n. e. c. (1) [13]	----------	TOOL	250	R
746010	Parts for dynamic balancing machines for balancing metal parts. (1)[13]	----------	TOOL	250	RO
746010	Horizontal multiple-slide wire and strip forming machines, and specially fabricated parts, n. e. c. (2) [13]	----------	TOOL	250	RO
	Physical properties testing and inspecting machines, n. e. c., and specially fabricated parts and accessories, n. e. c.:				
766990★	Diamond penetrators (indenters-brales) for metal hardness testers. (1).[18]	No.	GIEQ 7	None	RO
766990★	All micro hardness testers and specially fabricated parts and accessories, n. e. c. (specify make and model of hardness tester). (8).[27]	----------	GIEQ 7	None	RO
766990★	Other metal hardness testers only when actually including diamond indenters and brales, and specially fabricated parts and accessories, n. e. c. (specify make and model of hardness tester). (8).[27]	----------	GIEQ 7	None	RO
	Ball bearings including all components, and specially fabricated parts except separate balls (report separate balls in 769310) (see § 399.2, Int. 3):				
769100	Alloy steel [1]	----------	GIEQ 3	100	RO
769100	Carbon steel [1]	----------	GIEQ 3	100	RO
	Roller bearings including all components, and specially fabricated parts except separate rollers (report separate rollers in 769315) (see § 399.2, Int. 3):				
769200	Alloy steel [1]	----------	GIEQ 3	100	RO
769200	Carbon steel [1]	----------	GIEQ 3	100	RO
	Balls for bearings (see § 399.2, Int. 3):				
769310	Alloy steel [1]	----------	GIEQ 3	100	RO
769310	Carbon steel [1]	----------	GIEQ 3	100	RO
	Rollers for bearing (see § 399.2, Int. 3):				
769315	Alloy steel [1]	----------	GIEQ 3	100	RO
769315	Carbon steel [1]	----------	GIEQ 3	100	RO

See footnotes at end of table.

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar-value limits	Validated license required
	Air compressors:				
	Stationary, capacity over 25 cubic feet:				
770400	Centrifugal, rotary, axial, and mixed flow types of compressors (specify type, intake and delivery pressures, intake capacity, and whether pressure parts are fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A"). (1) [3]	No.	CONS 2	None	RO
770400	Reciprocating compressors for any delivery pressure, except (1) when delivery pressure is 150 p. s. i. g. or lower, and (2) when pressure parts are not fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A" (specify intake and delivery pressures, intake capacity, and whether pressure parts are corrosion-resistant). (2) [3]	No.	CONS 2	None	RO
	Stationary, capacity over 25 cubic feet:				
770500	Centrifugal, rotary, axial, and mixed flow types of compressors (specify type, intake and delivery pressures, intake, capacity, and whether pressure parts are fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A"). (1) [3]	No.	CONS 2	None	RO
770500	Reciprocating compressors for any delivery pressure or intake capacity, except (1) when delivery pressure is 150 p. s. i. g. or lower and intake capacity is 190 c. f. m. or lower, and (2) when pressure parts are not fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A" (specify intake and delivery pressures, intake capacity, and whether pressure parts are corrosion-resistant). (2) [3]	No.	CONS 2	None	RO
	Portable, capacity under 60 cubic feet:				
770610	Centrifugal, rotary, axial, and mixed flow types of compressors (specify type, intake and delivery pressures, intake capacity, and whether pressure parts are fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A"). (1) [3]	No.	CONS 2	None	RO
770610	Reciprocating compressors for any delivery pressure, except (1) when delivery pressure is 150 p. s. i. g. or lower, and (2) when pressure parts are not fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A" (specify intake and delivery pressures, intake capacity, and whether pressure parts are corrosion-resistant). (2) [3]	No.	CONS 2	None	RO
	Portable, capacity 60 cubic feet, and over:				
770615	Centrifugal, rotary, axial, and mixed flow types of compressors (specify type, intake and delivery pressures, intake capacity, and whether pressure parts are fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A"). (1) [3]	No.	CONS 2	None	RO
770615	Reciprocating compressors for any delivery pressure or intake capacity, except (1) when delivery pressure is 150 p. s. i. g. or lower, and intake capacity is 190 c. f. m. or lower, and (2) when pressure parts are not fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A" (specify intake and delivery pressures, intake capacity, and whether pressure parts are corrosion resistant). (2) [3]	No.	CONS 2	None	RO
	Gas compressors, n. e. c.:				
770625	Centrifugal, rotary, axial, and mixed flow types of compressors (specify type, intake and delivery pressures, intake capacity, and whether pressure parts are fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A"). (1) [3]	No.	CONS 2	None	RO

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar-value limits	Validated license required
	Gas compressors, n. e. c.—Continued				
770625	Reciprocating compressors for any delivery pressure or intake capacity, except (1) when delivery pressure is 150 p. s. i. g. or lower and intake capacity is 190 c. f. m. or lower, and (2) when pressure parts are not fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A" (specify intake and delivery pressure, intake capacity, and whether pressure parts are corrosion-resistant. (2) [3]	No.	CONS 2	None	RO
770630	Parts, n. e. c., specially fabricated for air and gas compressors included on the Positive List under Schedule B Nos. 770400 through 770625. (Complete knockdown compressors should be reported in the proper compressor classifications, whether the integral components are shipped simultaneously or in a series of partial shipments.) (1 and 2) [3 28]	----------	CONS 2	100	RO
	Blowers, n. e. c., turboblowers, and parts:				
770700	Centrifugal blowers, except turboblowers (specify intake and delivery pressures, intake capacity, and whether pressure parts are fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A"). [3]	No.	CONS 2	None	RO
770710	Axial blowers, except turboblowers (specify intake and delivery pressures, intake capacity, and whether pressure parts are fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A"). [3]	No.	CONS 2	None	RO
770720★	Turboblowers (specify type, intake and delivery pressures, intake capacity, and whether pressure parts are fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A"). [3]	No.	CONS 2	None	RO
770775	Blowers, n. e. c. (specify type, intake and delivery pressures, and intake capacity of blowers, and whether pressure parts are fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A"). (1) [3]	----------	CONS 2	100	RO
770775	Parts, n. e. c., specially fabricated for blowers included on the Positive List under Schedule B Nos. 770700 through 770775. (Complete knockdown blowers should be reported in the proper blower classifications, whether the integral components are shipped simultaneously or in a series of partial shipments.) (2) [3 29]	----------	CONS 2	100	RO
	Pumping equipment, n. e. c. (specify type of pump by generic name according to following classifications):				
770900★	Centrifugal pumps (delivering liquids separately or in combination with solids and/or gases), fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A" (indicate that pumps are corrosion-resistant). (1) [3 14]	No.	CONS	None	RO
770900	Centrifugal pumps (delivering liquids separately or in combination with solids and/or gases), not fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A", with either of the following characteristics: (a) designed delivery pressures at pump discharge of 300 p. s. i. and over; or (b) designed to operate continuously at temperatures of 220° F. and over (indicate that pumps are not corrosion-resistant and specify delivery pressure or operating temperature). (2) [3]	No.	CONS 3	None	RO
771900	Centrifugal pumps (delivering liquids separately or in combination with solids and/or gases), not fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A", with both of the following characteristics: (a) designed delivery pressure at pump discharge of 75 to 300 p. s. i.; and (b) designed to operate continuously at temperatures under 220° F (indicate that pumps are not corrosion-resistant and specify delivery pressure and operating temperature). (3) [3]	No.	CONS 3	None	R
	Pumping equipment, n. e. c. (specify type of pump by generic name according to following classifications)—Continued				
770910	Turbine pumps (delivering liquids separately or in combination with solids and/or gases) with any of the following characteristics: (a) designed delivery pressures at pump discharge of 300 p. s. i. and over as calculated by the manufacturer under the assumed condition that the bowl assembly is directly connected to the drive head assembly without intervening column pipe; (b) designed to operate continuously at temperatures of 220° F. and over; (c) fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A." (1) [3]	No.	CONS 3	None	RO
770910	Turbine pumps (delivering liquids separately or in combination with solids and/or gases) with all of the following characteristics: (a) designed delivery pressures at pump discharge of 75 to 300 p. s. i. as calculated by the manufacturer under the assumed condition that the bowl assembly is directly connected to the drive head assembly without intervening column pipe; (b) designed to operate continuously at temperatures under 220° F.; and (c) not fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A." (2) [3]	No.	CONS 3	None	R
770920	Rotary pumps (delivering liquids separately or in combination with solids and/or gases) with any of the following characteristics: (a) designed delivery pressures at pump discharge of 300 p. s. i. and over; (b) designed to operate continuously at temperatures of 220° F. and over; (c) fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A." (1) [3]	No.	CONS 3	None	RO
770920	Rotary pumps (delivering liquids separately or in combination with solids and/or gases) with all of the following characteristics: (a) designed delivery pressures at pump discharge of 75 to 300 p. s. i.; (b) designed to operate continuously at temperatures under 220° F.; and (c) not fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A." (2) [3]	No.	CONS 3	None	R
770930	Diaphragm pumps (delivering liquids separately or in combination with solids and/or gases) with any of the following characteristics: (a) designed delivery pressures at pump discharge of 300 p. s. i. and over; (b) designed to operate continuously at temperatures of 220° F. and over; (c) fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A." (1) [3]	No.	CONS 3	None	RO
770930	Diaphragm pumps (delivering liquids separately or in combination with solids and/or gases) with all of the following characteristics: (a) designed delivery pressures at pump discharge of 75 to 300 p. s. i.; (b) designed to operate continuously at temperatures under 220° F.; and (c) not fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A." (2) [3]	No.	CONS 3	None	R
770940	Reciprocating steam pumps (delivering liquids separately or in combination with solids and/or gases) with any of the following characteristics: (a) designed delivery pressures at pump discharge of 300 p. s. i. and over; (b) designed to operate continuously at temperatures of 220° F. and over; (c) fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A." (1) [3]	No.	CONS 3	None	RO
770940	Reciprocating steam pumps (delivering liquids separately or in combination with solids and/or gases) with all of the following characteristics: (a) designed delivery pressures at pump discharge of 75 to 300 p. s. i.; (b) designed to operate continuously at temperatures under 220° F.; and (c) not fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A." (2) [3]	No.	CONS 3	None	R

See footnotes at end of table.

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar-value limits	Validated license required
	Pumping equipment, n. e. c. (specify type of pump by generic name according to following classifications)—Continued				
770950	Other reciprocating power pumps (delivering liquids separately or in combination with solids and/or gases) with any of the following characteristics: (a) designed delivery pressures at pump discharge of 300 p. s. i. and over; (b) designed to operate continuously at temperatures of 220° F. and over; (c) fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A." [3]	No.	CONS 3	None	RO
770950	Other reciprocating power pumps (delivering liquids separately or in combination with solids and/or gases) with all of the following characteristics: (a) designed delivery pressures at pump discharge of 75 to 300 p. s. i.; (b) designed to operate continuously at temperatures under 220° F.; and (c) not fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A." (2) [3]	No.	CONS 3	None	R
770980	Pumps, n. e. c. (delivering liquids separately or in combination with solids and/or gases) with all of the following characteristics: (a) designed delivery pressures at pump discharge of 75 to 300 p. s. i.; (b) designed to operate continuously at temperatures under 220° F.; and (c) not fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A." (2) [3]	No.	CONS 3	None	R
770980	Pumps, n. e. c. (delivering liquids separately or in combination with solids and/or gases) with any of the following characteristics: (a) designed delivery pressures at pump discharge of 300 p. s. i. and over; (b) designed to operate continuously at temperatures of 220° F. and over; and (c) fabricated of, or lined with, any corrosion-resistant materials as defined in the "General Notes to Appendix A." (1) [3]	No.	CONS 3	None	RO
770995	Parts, n. e. c., specially fabricated for pumps classified under Schedule B Nos. 770900 through 770950, and 770980, irrespective of delivery pressures, operating temperatures and materials used in their fabrication. (Complete knockdown pumps should be reported in the proper pump classifications, whether the integral components are shipped simultaneously or in a series of partial shipments.) (1) [3]	----------	CONS 3	100	RO
	Automatic control or regulating valves, n. e. c. (any pipe valve having a mechanism partially integral, i. e., directly attached by adaptors and bolts, or wholly integral, for automatically regulating or controlling its operation):				
774490★	Automatic control valves, except the following when their pressure parts are not made of or wholly lined with corrosion-resistant materials as defined in the "General Notes to Appendix A": (a) check, non-re turn and float valves: (b) pressure relief valves designed for a working pressure of less than 300 p. s. i.; and (c) valves specially fabricated for milking machines and for electric household refrigerators and home freezers (specify size, working pressure, method of automatic control, i. e., hydraulic, pneumatic, mechanical, electrical, or otherwise actuated (give full description), whether pressure parts are made of or wholly lined with corrosion-resistant materials, and whether fitted with bellows seal). [1 30]	No.	GIEQ 5	50	RO
788901	Parts and accessories, n. e. c., specially fabricated for tracklaying tractors (report engines in 714320–714360 and 714710–714910; attachments in 722030). [3]	----------	CONS 1	250	R
	Rubber compounding agents of coal-tar origin:				
802810	Accelerators [10]	Lb.	COTA 61	100	RO
802850	Antioxidants [10]	Lb.	COTA 61	100	RO
802890	Other rubber compounding agents of coal-tar origin, n. e. c. (specify by name). [10]	Lb.	COTA 61	100	RO
	Biologics (all forms):				
812100	Gamma-globulin, human (immune serum globulin, poliomyelitis immune globulin, etc.). (1) [6]	----------	DRUG 1	None	RO
	Medicinal chemicals, including U. S. P. and N. F., bulk dosage forms excluded except as indicated):				
	Sulfonamide drugs, all forms:				
813551	Sulfanilamide, bulk, parenteral, oral, and powder (dosage forms (excludes other topical forms and suppositories). [10]	Lb.	DRUG	100	RO
	Sulfathiazole and derivatives:				
813552	Bulk [10]	Lb.	DRUG 1	100	RO
813554	Parenteral, oral, and powder dosage forms (excludes other topical forms and suppositories). [10]	Lb.	DRUG 1	100	RO
	Sulfadiazine and derivatives:				
813556	Bulk [10]	Lb.	DRUG 1	100	RO
813558	Parenteral, oral, and powder dosage forms (excludes other topical forms and suppositories). [10]	Lb.	DRUG 1	100	RO
813560	Sulfaguanidine, bulk, parenteral, oral, and powder dosage forms (excludes other topical forms and suppositories). [10]	Lb.	DRUG 1	100	RO
813562	Sulfonamide drugs, n. e. c., bulk, parenteral, oral, and powder dosage forms (excludes other topical forms and suppositories). [10]	Lb.	DRUG 1	100	RO
	Antibiotics, derivatives, and preparations, all forms except feed supplements (report antibiotic feed supplements containing not less than 100,000 Oxford units of penicillin, or 100,000 units of bacitracin, per pound, or not less than 1/10-gram of any other antibiotic per pound, in 814310; and prepared feeds containing less than 100,000 Oxford units of penicillin, or 100,000 units of bacitracin per pound, or less than 1/10-gram of any other antibiotic per pound, in 117500, 117700, 118500 or 119900, according to typeof feed):				
	Penicillin:				
813564	Bulk. [10]	Oxford unit	DRUG 2	100	RO
813566	Parenteral and oral dosage forms (excludes topical forms and suppositories). [10]	Oxford unit	DRUG 2	100	RO
	Streptomycin:				
813568	Bulk. [10]	Gram	DRUG 3	100	RO
813570	Parenteral and oral dosage forms (excludes topical forms and suppositories). [10]	Gram	DRUG 3	100	RO
	Dihydrostreptomycin:				
813571	Bulk [10]	Gram	DRUG 3	100	RO
813572	Parenteral and oral dosage forms (excludes topical forms and suppositories) [10]	Gram	DRUG 3	100	RO
813574	Antibiotics, n. e. c., except tyrothricin, polymixin, and neomycin, bulk, parenteral, oral, and powder dosage forms (excludes other topical forms and suppositories). [10]	Gram	DRUG	100	RO
813578	Compounds or mixtures containing antibiotics and/or sulfonamide drugs, bulk, parenteral, oral, and powder dosage forms (excludes other topical forms and suppositories). [10]	----------	DRUG	100	RO
	Plastics and resin materials:				
	Synthetic resins:				
	Vinyl and vinylidene polymer and copolymer resins in all unfinished forms, except laminated:				
825421	Vinyl chloride, vinylidene chloride, and copolymers thereof in powder, flake, lump, granular, and liquid forms (without plasticizers, fillers, or other added ingredients) (specify form) (report vinyl and vinylidene polymer and copolymer resins with plasticizers, fillers, or other added ingredients in 825423). [10]	Lb.	RESN 66	100	R
825423	Compounds in granular, diced, or other unfinished forms, based on vinyl or vinylidene chloride resins and copolymers thereof, plasticized or unplasticized (i.e., extrusion, molding, and calendering compounds, dispersions and solutions) (specify form). [10]	Lb.	RESN 66	100	R

See footnotes at end of table.

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar-value limits	Validated license required
	Plastics and resin materials—Continued				
	Synthetic resins—Continued				
	Vinyl and vinylidene polymer and copolymer resins in all unfinished forms, except laminated—Con.				
825425	Film and sheeting, plasticized or unplasticized, based on vinyl or vinylidene chloride resins and copolymers thereof, including printed, embossed, planished, or otherwise treated surface, in any form (report manufactured plastic products in 981510 and 981590 and woven fabrics in 384600-384985).[10]	Lb.	RESN 66	250	R
825427	Other unfinished forms of vinyl chloride, vinylidene chloride and copolymers of vinyl chloride, including extrusions (tubing (except laminated), bristles, monofilaments, etc.) moldings, castings, etc. (specify form) (report manufactured plastic products in 981510 and 981590; monofilaments for weaving into fabrics in 384050 and 384052; woven fabrics in 384600-384985).[10]	Lb.	RESN 66	100	R
	Cellulose plastic materials (report manufactured plastic products in 981510 and 981590):				
	Cellulose acetate, cellulose acetate-butyrate, cellulose acetate-propionate, and other cellulose esters:				
	For other uses (including film support and base) in sheets, rods, tubes, continuous sheeting, cut pieces, and other unfinished forms:				
826550	Cellulose acetate, 0.0015 inch (0.038 mm) or less in thickness.[10]	Lb.	RESN	1	RO
	Organic rubber compounding agents not of coal-tar origin (report rubber compounding agents of coal-tar origin in 802810-802890):				
829810	Accelerators [10]	Lb.	COTA	100	RO
829850	Antioxidants [10]	Lb.	COTA	100	RO
829890	Rubber compounding agents, n. e. c. (specify by name)[10]	Lb.	COTA	100	RO
829940	Radioactive isotopes, compounds and preparations thereof, radium emanation (Radon), and radium salts and compounds, all forms (including radium needles and radium ore concentrate) (state radium content) (report paints containing radium in 843800).[21]		DRUG	None	RO
	Reagent chemicals for laboratory use (C. P., U. S. P., N. F., A. C. S., or other recognized reagent grades only) (specify by name):				
829970	Sodium bismuthate [21]	Lb.	DRUG	None	RO
832700	Cellulose nitrate, wet down or plasticized [10]	Lb.	RESN 66	100	R
	Other industrial chemicals:				
839900	Vanadium compounds, n. e. c. (report vanadium pentoxide, vanadic oxide, vanadium oxide, vanadic acid, vanadic anhydride and vanadates, except chemically pure grade, under 664588; report chemically pure grade under 829970). (37) [18]		SALT 05	100	RO

[1] The GLV dollar-value limit is increased.
[2] The GLV dollar-value limit is decreased.
[3] The processing code is changed or related commodity group number is changed (see § 372.2 (b) and (c)).
[4] The letter "A" is added in the column headed "Commodity Lists," indicating that the commodity is subject to the IC/DV procedure (see § 373.2).
[5] The letter "A" is deleted in the column headed "Commodity Lists," indicating that the commodity is no longer subject to the IC/DV procedure (see § 373.2).
[6] The letter "B" is added in the column headed "Commodity Lists," indicating that the commodity is subject to DL restrictions (see § 374.2), and is excepted from the Time Limit licensing procedure (see Part 377), effective December 19, 1953.
[7] The letter "B" is deleted in the column headed "Commodity Lists," indicating that the commodity is no longer subject to DL restrictions (see § 374.2), and is no longer excepted from the Time Limit licensing procedure (see Part 377).
[8] The letter "D" is added in the column headed "Commodity Lists," indicating that the commodity is subject to evidence of availability requirements (see § 373.3).
[9] The letter "D" is deleted in the column headed "Commodity Lists," indicating that the commodity is no longer subject to evidence of availability requirements (see § 373.3).
[10] The letter "E" is added in the column headed "Commodity Lists," indicating that the commodity may be exported under the Periodic Requirements licensing procedure (see Part 376).
[11] The letter "E" is deleted in the column headed "Commodity Lists," indicating that the commodity may no longer be exported under the Periodic Requirements licensing procedure (see Part 376), effective December 19, 1953.
[12] The letter "F" is added in the column headed "Commodity Lists," indicating that the commodity may be exported under the Foreign Distribution licensing procedure (see Part 378).
[13] The letter "F" is deleted in the column headed "Commodity Lists," indicating that the commodity may no longer be exported under the Foreign Distribution licensing procedure (see Part 378), effective December 19, 1953.
[14] The letter "G" is added in the column headed "Commodity Lists," indicating that the commodity may be exported under general license GLV to R and O destinations, ony within the dollar-value limit specified on the Positive List (see § 371.10 (c)), effective December 19, 1953.
[15] The letter "G" is deleted in the column headed "Commodity Lists," indicating that the commodity may be exported to Group O destinations under general license GLV within the $500 dollar-value limit (see § 371.10 (c)).
[16] The destination control is changed from R to RO.
[17] The destination control is changed from RO to R.
[18] The commodity description is revised without substantive change.
[19] The unit of quantity is changed.
[20] The commodity is excepted from the provisions of General In-Transit GIT License (see § 371.9 (e)), effective December 19, 1953.
[21] The commodity is no longer excepted from the provisions of General In-Transit License GIT (see § 371.9 (c)).
[22] The effect of this revision is to change the basis for determining license requirements for dielectric paper to include only such paper when 0.0035 inches or less in thickness.
[23] Carbon steel welding rods, are deleted from the Positive List.
[24] Zinc welding rods and wires are presently included in the last entry on the Positive List under Schedule B No. 619039.
[25] Parts and accessories, n. e. c., specially fabricated for power and distribution transformers under 100 kilovolt amperes are removed from the Positive List.
[26] The effect of this revision is to delete parts for detachable outboard motors under 50 horsepower.
[27] The effect of this revision is to delete hardness testers not of the micro hardness type which do not use diamond penetrators.
[28] The requirement to specify type, intake and delivery pressures, and intake capacity of compressors for which parts are intended, and whether pressure parts are fabricated of or lined with corrosion-resistant materials is removed; and the Periodic Requirements (PRL) license (see Part 376) is made available for parts for gas compressors included on the Positive List under Schedule B No. 770625.
[29] The requirement to specify whether pressure parts are fabricated of or lined with any corrosion-resistant materials is removed.
[30] The effect of this revision is to extend the coverage of the entry to include all types of automatic control valves when their pressure parts are made of or wholly lined with corrosion-resistant materials, effective November 27, 1953.
★The commodities described in this Positive List entry are excepted from the provisions of General In-Transit License, GIT. See § 371.9 (e).
†The GLV dollar-value limit for shipments to Mexico is $1,000.

Shipments of any commodities removed from general license to Country Group R or Country Group O destinations as a result of changes set forth in this amendment, which were on dock, on lighter, laden aboard an exporting carrier, or in transit to a port of exit pursuant to actual orders for export prior to 12:01 a. m., November 27, 1953, may be exported under the previous general license provisions up to and including December 19, 1953. Any such shipment not laden aboard the exporting carrier on or before December 19, 1953, requires a validated license for export.

This part of the amendment shall become effective as of November 19, 1953, unless otherwise indicated in the footnotes.

2. Section 399.2 *Appendix B—Commodity Interpretations* is amended by adding thereto *Interpretation 13* to read as follows:

INTERPRETATION 13: VARIABLE SPEED TRANSMISSION

Variable speed transmissions, as listed on the Positive List under Schedule B No. 775400, are intended to include two types of power transmissions: mechanical and hydraulic, except vehicular.

Mechanical transmissions are those that transmit power by mechanical connection between the driving and driven elements. The changes of speed are variable at will, being limited only by the design range, while the unit is in operation. This is accomplished by changing the pitch ratio between the driving and driven pulleys or by shifting the drive belt position on two cones which are mounted in reversed positions on their respective shafts.

Hydraulic transmissions are those that transmit by circulating fluid, of variable pressure and/or volume between the driving and driven elements. The driving fluid may be used to produce linear or rotary motion and the volume may be varied to produce any speed range within the design limitations of the unit.

Specially fabricated parts and components, n. e. c. (Schedule B No. 775400), are not included on the Positive List and may be shipped under General License GRO. Included in this category of parts and components are the pumps specially fabricated for hydraulic power transmission. They do not deliver liquids but operate on a closed recircultaing system in which the liquid is used as the medium for transmitting power but is not itself transported beyond the limits of its own circulation system.

Pumps which may be adapted to hydraulic power transmission but can be used in other applications as well, are not intended to be included in Schedule B No. 775400. Pumps of this type must be reported elsewhere, depending on the specifications (see Schedule B. Nos. 770900–770980).

This part of the amendment shall become effective as of November 19, 1953.

(Sec. 3, 63 Stat. 7; 65 Stat. 43; 67 Stat. 62; 50 U. S. C. App. Sup. 2023. E. O. 9630, Sept. 27, 1945, 10 F. R. 12245, 3 CFR, 1945 Supp.; E. O. 9919, Jan. 3, 1948, 13 F. R. 59, 3 CFR, 1948 Supp.)

LORING K. MACY,
Director,
Bureau of Foreign Commerce.

[F. R. Doc. 53-9969; Filed, Nov. 30, 1953; 8:45 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter I—Coast Guard, Department of the Treasury

Subchapter M—Coast Guard Vessels

[CGFR 53-50]

PART 135—LIGHTS FOR COAST GUARD VESSELS OF SPECIAL CONSTRUCTION

EXEMPTIONS OF STATUTORY REQUIREMENTS FOR COAST GUARD VESSELS

The provisions of section 2 and Rule 13 (b) in section 6 of the act of October 11, 1951 (65 Stat. 407, 415; 33 U. S. C. 143a, 145k), and section 1 of the act of December 3, 1945, as amended (59 Stat. 590; 33 U. S. C. 360), provide, in essence, that Coast Guard vessels of special construction may be exempted from certain requirements of the various applicable laws with respect to the number, position, range of visibility, or arc of visibility of the lights required to be displayed by vessels when navigating on the high seas or on navigable waters of the United States, its territories or possessions. Section 2 of the act of October 11, 1951, and section 1 of the act of December 3, 1945, also provide that if any exempted vessel or class of vessels, by reason of special construction, cannot comply with the applicable requirements, the lights prescribed shall conform as closely to the requirements of the applicable laws as it is found or certified to be feasible. These laws also require that notice of such findings or certifications, together with the requirements describing the character and position of the lights to be displayed on such exempted vessel, or class of vessels, shall be published in the FEDERAL REGISTER and in the Notice to Mariners.

The new Subchapter M, containing Part 135, for placement in Chapter I of Title 33 of the Code of Federal Regulations, as contained in this document, sets forth the findings, certifications, exempted requirements, and the requirements certified to be found feasible for certain Coast Guard vessels with respect to lights.

By virtue of the authority vested in me as Commandant, United States Coast Guard, by Treasury Department Order No. 167-6, dated November 17, 1953, Chapter I of Title 33 CFR is amended by adding the following new regulations which shall be effective on and after January 1, 1954:

Sec.

135.01 Purpose of regulations.
135.05 Authority for regulations.
135.10 Definition of terms used in this part.
135.15 General findings and certifications.
135.20 Extent of compliance.
135.25 International Rules; horizontal separation of range lights.
135.30 International Rules; height of forward masthead light.
135.50 Great Lakes Rules; horizontal separation of range lights.

AUTHORITY: §§ 135.01 to 135.50 issued under sec. 1, 59 Stat. 590, sec. 2, 65 Stat. 407; 33 U. S. C. 360, 143a. Statutory provisions interpreted or applied are cited to text in parentheses.

§ 135.01 *Purpose of regulations.* The regulations in this part set forth findings, certifications, exemptions from certain statutory requirements, and those requirements found or certified to be feasible for Coast Guard vessels, by reason of special construction, with respect to the number, position, range of visibility, or arc of visibility of the lights required to be displayed by vessels when navigating on the high seas or navigable waters of the United States, its territories or possessions.

§ 135.05 *Authority for regulations.* The authority to prescribe regulations in this part for Coast Guard vessels of special construction is set forth in section 2 of the act of October 11, 1951, as amended (65 Stat. 407; 33 U. S. C. 143a), and section 1 of the act of December 3, 1945, as amended (59 Stat. 590; 33 U. S. C. 360). Rule 13 (b), International Rules (Section 6, Part B, 65 Stat. 415; 33 U. S. C. 145k), authorizes the Government to make certain special rules which will apply on the high seas, so far as its naval or other military vessels of special construction are concerned. In accordance with these laws the Acting Secretary of the Treasury by Treasury Department Order No. 167-6, dated November 17, 1953, delegated to the Commandant these functions pertaining to lights for Coast Guard vessels of special construction.

§ 135.10 *Definition of terms used in this part*—(a) *International Rules.* The term "International Rules" means the "Regulations for Preventing Collisions at Sea, 1948," as set forth in section 6 of the act of October 11, 1951, as amended (65 Stat. 408-420, as amended; 33 U. S. C. 144-147d).

(b) *Inland Rules.* The term "Inland Rules" means the rules for the navigation of rivers, harbors, and inland waters of the United States, except (1) the Great Lakes and their connecting and tributary waters as far east as Montreal, (2) the waters of the Mississippi River between its source and the Huey P. Long Bridge and all of its tributaries emptying thereinto and their tributaries, (3) that part of the Atchafalaya River above its junction with the Plaquemine-Morgan City alternate waterway, and (4) the Red River of the North, as set forth in the act of June 7, 1897, as amended (30 Stat. 96-103, as amended; 33 U. S. C. 154-232).

(c) *Great Lakes Rules.* The term "Great Lakes Rules" means the act to regulate navigation on the Great Lakes and their connecting and tributary waters of February 8, 1895, as amended (28 Stat. 645-650, as amended; 33 U. S. C. 241-294).

§ 135.15 *General findings and certifications.* (a) It is hereby found that the Coast Guard vessels of special construction described in this part cannot comply with certain applicable statutory requirements, enumerated in various sections of this part, relating to the lights required to be displayed by vessels when navigating on the high seas or navigable waters of the United States, its territories or possessions, without seriously affecting the military characteristics and functions of the vessels concerned.

(b) It is hereby found and certified that the requirements regarding lights, as stated in the various sections of this part, which will be carried by the Coast Guard vessels described, conform as closely as feasible to the applicable statutory requirements.

§ 135.20 *Extent of compliance.* Except as provided otherwise in this part, the Coast Guard vessels described in this part are in full compliance with the other provisions of the applicable International Rules, Inland Rules, or Great Lakes Rules governing the areas where the vessels are being operated.

§ 135.25 *International Rules; horizontal separation of range lights.* (a) Rule 2 (a) (iii), International Rules, requires in part that the minimum horizontal separation between the forward masthead light and the after range light shall be at least 45 feet (33 U. S. C. 145 (a) (iii)). Because of special construction, the Coast Guard vessels named in this section cannot comply with this requirement and are therefore exempted.

(b) The following Auxiliary vessel shall carry the forward masthead light and the after range light with a horizontal separation of 34 feet:

U. S. C. G. C. Storis (WAG-38).

(c) The following Icebreakers shall carry the forward masthead light and after range light with a horizontal separation of 23 feet:

U. S. C. G. C. Eastwind (WAGB-279).
U. S. C. G. C. Northwind (WAGB-282).
U. S. C. G. C. Westwind (WAGB-281).

(d) The following Escort vessels shall carry the forward masthead light and after range light with a horizontal separation of 34 feet:

U. S. C. G. C. Chambers (WDE-491).
U. S. C. G. C. Durant (WDE-489).
U. S. C. G. C. Falgout (WDE-424).
U. S. C. G. C. Finch (WDE-428).
U. S. C. G. C. Forster (WDE-434).
U. S. C. G. C. Koiner (WDE-431).
U. S. C. G. C. Lansing (WDE-488).
U. S. C. G. C. Lowe (WDE-425).
U. S. C. G. C. Newell (WDE-422).
U. S. C. G. C. Ramsden (WDE-482).
U. S. C. G. C. Richey (WDE-485).
U. S. C. G. C. Vance (WDE-487).

(e) The following Buoy Tenders, Class 180-A, shall carry the forward masthead light and after range light with a horizontal separation of 24 feet:

U. S. C. G. C. Balsam (WAGL-62).
U. S. C. G. C. Cactus (WAGL-270).
U. S. C. G. C. Citrus (WAGL-300).
U. S. C. G. C. Clover (WAGL-292)
U. S. C. G. C. Conifer (WAGL-301).
U. S. C. G. C. Cowslip (WAGL-277)
U. S. C. G. C. Evergreen (WAGL-295)
U. S. C. G. C. Gentian (WAGL-290).
U. S. C. G. C. Laurel (WAGL-291).
U. S. C. G. C. Madrona (WAGL-302).
U. S. C. G. C. Sorrel (WAGL-296).

(f) The following Buoy Tenders, Class 180-B, shall carry the forward masthead light and after range light with a horizontal separation of 16 feet:

U. S. C. G. C. Buttonwood (WAGL-306).
U. S. C. G. C. Ironwood (WAGL-297).
U. S. C. G. C. Papaw (WAGL-308).
U. S. C. G. C. Planetree (WAGL-307).
U. S. C. G. C. Sweetgum (WAGL-309).

(g) The following Buoy Tenders, Class 180–C, shall carry the forward masthead light and after range light with a horizontal separation of 16 feet:

U. S. C. G. C. Basswood (WAGL–388).
U. S. C. G. C. Bittersweet (WAGL–389).
U. S. C. G. C. Blackhaw (WAGL–390).
U. S. C. G. C. Blackthorn (WAGL–391).
U. S. C. G. C. Bramble (WAGL–392).
U. S. C. G. C. Firebush (WAGL–393).
U. S. C. G. C. Hornbeam (WAGL–394).
U. S. C. G. C. Iris (WAGL–395).
U. S. C. G. C. Mallow (WAGL–396).
U. S. C. G. C. Mariposa (WAGL–397).
U. S. C. G. C. Sagebrush (WAGL–399).
U. S. C. G. C. Salvia (WAGL–400).
U. S. C. G. C. Sassafras (WAGL–401).
U. S. C. G. C. Sedge (WAGL–402).
U. S. C. G. C. Spar (WAGL–403).
U. S. C. G. C. Sweetbrier (WAGL–405).

(h) The following Gunboat shall carry the forward masthead light and after range light with a horizontal separation of 17 feet:

U. S. C. G. C. Tampa (WPG–164).

(Sec. 6, Rule 13 (b), 65 Stat. 415, sec. 4, 62 Stat. 250; 33 U. S. C. 145k, 356)

§ 135.30 *International Rules; height of forward masthead light.* (a) Rule 2 (a) (iii), International Rules, requires the forward masthead light to be carried at a height above the hull of not less than 20 feet, and, if the breadth of the vessel exceeds 20 feet, then at a height above the hull not less than such breadth, but the light need not be placed at a greater height above the hull than 40 feet (33 U. S. C. 145 (a) (iii)). Because of special construction, the Coast Guard vessels named in this section cannot comply with this requirement and are therefore exempted.

(b) The following Gunboat has a breadth of over 40 feet and shall carry the forward masthead light at a height of 27 feet above the hull:

U. S. C. G. C. Tampa (WPG–164).

(c) The following Escort vessels have a breadth of 37½ feet and shall carry the forward masthead light at a height of 27 feet above the hull:

U. S. C. G. C. Chambers (WDE–491).
U. S. C. G. C. Durant (WDE–489).
U. S. C. G. C. Falgout (WDE–424).
U. S. C. G. C. Finch (WDE–428).
U. S. C. G. C. Forster (WDE–434).
U. S. C. G. C. Koiner (WDE–431).
U. S. C. G. C. Lansing (WDE–488).
U. S. C. G. C. Lowe (WDE–425).
U. S. C. G. C. Newell (WDE–422).
U. S. C. G. C. Ramsden (WDE–482).
U. S. C. G. C. Richey (WDE–485).
U. S C. G. C. Vance (WDE–487).

(Sec. 6, Rule 13 (b), 65 Stat. 415, sec. 4, 62 Stat. 250; 33 U. S. C. 145k, 356)

§ 135.50 *Great Lakes Rules; horizontal separation of range lights.* (a) Rule 3 (e), Great Lakes Rules, requires in part that the minimum horizontal separation between the forward masthead light and the after range light shall be more than 50 feet (33 U. S. C. 252 (e)). Because of special construction, the Coast Guard vessels named in this section cannot comply with this requirement and are therefore exempted.

(b) The following Buoy Tenders, Class 180–A, shall carry the forward masthead light and after range light with a horizontal separation of 24 feet:

U. S. C. G. C. Tupelo (WAGL–303).
U. S. C. G. C. Woodbine (WAGL–289).

(c) The following Buoy Tender, Class 180–B, shall carry the forward masthead light and after range light with a horizontal separation of 16 feet:

U. S. C. G. C. Mesquite (WAGL–305).

(d) The following Buoy Tenders, Class 180–C, shall carry the forward masthead light and after range light with a horizontal separation of 16 feet:

U. S. C. G. C. Acacia (WAGL–406).
U. S. C. G. C. Sundew (WAGL–404).
U. S. C. G. C. Woodrush (WAGL–407).

(e) The following Icebreaker shall carry the forward masthead light and after range light with a horizontal separation of 36 feet:

U. S. C. G. C. Mackinaw (WAGB–83).

Dated: November 25, 1953.

[SEAL] A. C. RICHMOND,
Real Admiral, U. S. Coast Guard, Acting Commandant.

[F. R. Doc. 53–10041; Filed, Nov. 30, 1953; 8:54 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 929]

ALASKA

REVOKING EXECUTIVE ORDER NO. 7888 OF MAY 16, 1938

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 7888 of May 16, 1938, temporarily withdrawing the following-described lands for classification and pending determination as to the advisability of reserving them for national monument purposes, is hereby revoked:

SEWARD MERIDIAN

T. 4 N., R. 11 W.,
Sec. 20, E½;
Secs. 21 and 28;
Sec. 29, E½.

The areas described aggregate 1,920 acres.

The lands are within the exterior limits of the Kenai National Moose Range as established by Executive Order No. 8979 of October 16, 1941, and are included in the withdrawal for classification and examination and in aid of proposed legislation made by Public Land Order No. 487 of June 16, 1948.

ORME LEWIS,
Assistant Secretary of the Interior.

NOVEMBER 24, 1953.

[F. R. Doc. 53–10014; Filed, Nov. 30, 1953; 8:46 a. m.]

TITLE 45—PUBLIC WELFARE

Chapter IV—Office of Vocational Rehabilitation, Department of Health, Education, and Welfare

PART 402—BUSINESS ENTERPRISES PROGRAM FOR THE BLIND

TERMS

Pursuant to the authority conferred by Title II of Pub. Law 170, 83d Cong., governing Federal reimbursement for one-half of necessary expenditures for acquisition of vending stands and other equipment to be controlled by the State Agency for the use of blind persons, the regulations prescribed pursuant to Title II of Pub. Law 165, 80th Cong. (12 F. R. 4644), as revised by the regulations relating to the same subject prescribed pursuant to Title II of Ch. V of Pub. Law 759, 81st Cong. (15 F. R. 6449), are hereby adopted and prescribed as the regulations under Title II of Pub. Law 170, 83d Cong., with the following change:

Section 402.2 (a) is hereby changed to read as follows:

§ 402.2 *Terms.* * * *

(a) "Act" means Title II of Pub. Law 170, 83d Cong.

(29 Stat. 929, as amended, 49 Stat. 1559, sec. 7, 57 Stat. 374; 20 U. S. C. 11–30, 107–107*l*, 29 U. S. C. 37)

Dated: November 24, 1953.

[SEAL] NELSON A. ROCKEFELLER,
Acting Secretary.

[F. R. Doc. 53–10023; Filed, Nov. 30, 1953; 8:48 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

[5th Rev. S. O. 95, Amdt. 2]

PART 95—CAR SERVICE

APPOINTMENT OF REFRIGERATOR CAR AGENT

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 24th day of November A. D. 1953.

Upon further consideration of the provisions of Fifth Revised Service Order No. 95 (18 F. R. 473, 3732), and good cause appearing therefor: It is ordered, that:

Section 95.95 *Appointment of refrigerator car agent,* of Fifth Revised Service Order No. 95, be, and it is hereby, amended by substituting the following paragraph (d) for paragraph (d) thereof:

(d) This section, as amended, shall expire at 11:59 p. m., June 30, 1954, unless otherwise modified, changed, suspended, or annulled by order of this Commission.

It is further ordered, that this amendment shall become effective at 11:59 p. m., November 30, 1953; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of

that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interprets or applies sec. 1, 24 Stat. 379, as amended; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 53-10024; Filed, Nov. 30, 1953; 8:49 a. m.]

[2d Rev. S. O. 872, Amdt. 3]

PART 95—CAR SERVICE

MOVEMENT OF GRAIN TO TERMINAL ELEVATORS BY PERMIT

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 24th day of November, A. D. 1953.

Upon further consideration of the provisions of Second Revised Service Order No. 872 (17 F. R. 10738; 18 F. R. 1858, 4503), and good cause appearing therefor: It is ordered, that:

Section 95.872 Second Revised Service Order No. 872, *Movement of grain to terminal elevators by permit* be, and it is hereby, amended by substituting the following paragraph (e) hereof for paragraph (e) thereof:

(e) *Expiration date.* This section shall expire at 11:59 p. m., April 30, 1954, unless otherwise modified, changed, suspended, or annulled by order of this Commission.

It is further ordered, that this amendment shall become effective at 11:59 p. m., November 30, 1953; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interprets or applies sec. 1, 24 Stat. 379, as amended; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 53-10025; Filed, Nov. 30, 1953; 8:49 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR Part 918]

[Docket No. AO 219-A3]

HANDLING OF MILK IN MEMPHIS, TENNESSEE, MARKETING AREA

NOTICE OF HEARING ON PROPOSED AMENDMENTS TO TENTATIVE MARKETING AGREEMENT AND TO ORDER, AS AMENDED

Pursuant to the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of a public hearing to be held in the Military Room, King Cotton Hotel, Memphis, Tennessee, beginning at 10:00 a. m., December 17, 1953, for the purpose of receiving evidence with respect to economic conditions which relate to the handling of milk in the Memphis, Tennessee, marketing area and to the proposed amendments hereinafter set forth, or appropriate modifications thereof, to the tentative marketing agreement heretofore approved by the Secretary of Agriculture and to the order, as amended, regulating the handling of milk in the Memphis, Tennessee, marketing area (7 CFR 918 et seq.). These proposed amendments have not received the approval of the Secretary of Agriculture.

Proposals No. 1 and No. 3 relative to the enlargement of the marketing area and to a change in the producer definition, respectively, raise the issue as to whether the provisions of the present order would tend to effectuate the declared policy of the act if applied to the marketing area as proposed to be extended and to the additional producers who would be included under the proposed definition, or if not, what modifications of the classification, pricing (including differentials) and payment provisions of the order, as amended, are appropriate to effectuate the declared policy of the act.

Amendments to the order, as amended, regulating the handling of milk in the Memphis, Tennessee, milk marketing area have been proposed as follows:

By Mid-South Milk Producers Association:

1. Delete § 918.6 and substitute therefor the following:

§ 918.6 *Memphis, Tennessee, marketing area.* "Memphis, Tennessee, marketing area," hereinafter called the "marketing area" means all the territory within the boundaries of the county of Shelby and the city of Jackson within the State of Tennessee; and all of the territory within the limits of the City of West Memphis in the State of Arkansas.

2. Delete § 918.7 and substitute therefor the following:

§ 918.7 *Fluid milk plant.* "Fluid milk plant" means (a) any milk plant approved to sell or dispose of milk in the marketing area and used during the month for the processing and packaging of Grade A milk and from which not less than 5 percent of the milk received from producers is distributed in the container in which packaged from delivery routes or plant stores as Class I milk in the marketing area; or (b) any approved receiving station at which producer milk is received and cooled for delivery to a plant(s) described under paragraph (a) in this section.

3. Delete § 918.10 and substitute therefor the following:

§ 918.10 *Producer.* "Producer" means any person, except a producer-handler, who produces milk under a dairy farm inspection permit issued by a health authority duly authorized to administer laws and regulations governing the quality of milk for consumption as milk in the marketing area and whose milk is: (a) Received at a fluid milk plant, or (b) diverted by a handler from a fluid milk plant to a nonfluid milk plant: *Provided,* That any such milk so diverted shall be deemed to have been received at the fluid milk plant by the handler who causes it to be diverted.

4. Add a new § 918.14 which shall read as follows:

§ 918.14 *Chicago butter price.* "Chicago butter price" means the simple average as computed by the market administrator of the daily wholesale selling prices (using the midpoint of any price range as one price) per pound of Grade A (92-score) bulk creamery butter at Chicago as reported by the Department of Agriculture during the month.

5. Delete § 918.41 and substitute therefor the following:

§ 918.41 *Classes of utilization.* Subject to the conditions set forth in §§ 918.43 and 918.44, the classes of utilization shall be as follows:

(a) Class I milk shall be all skim milk (including concentrated or reconstituted skim milk solids) and butterfat (1) disposed of in fluid form as milk, skim milk, cream (including sour cream), buttermilk, milk drinks (plain or flavored) except skim milk and butterfat disposed of in fluid form for livestock feed; (2) disposed of in fluid form as any milk product which is required by the appropriate health authority in the marketing area to be made from milk, skim milk or cream, from sources approved by such authority; and (3) not accounted for as Class II milk.

(b) Class II milk shall be all skim milk and butterfat the utilization of which is established: (1) As used to produce any product other than those specified in paragraph (a) of this section, (2) as disposed of by transfer or diversion to a nonfluid milk plant and classified as Class II milk under the provisions of § 918.44 (c), (3) as disposed of for livestock feed, (4) in plant shrinkage of skim milk and butterfat up to 2 percent of skim milk and butterfat received from producers, and (5) in plant shrinkage in other source milk.

6. Add a new paragraph (c) in § 918.43 which shall read as follows:

(c) If any of the water contained in the milk from which a product is made is removed before such product is disposed of by a handler, the hundredweight of skim milk disposed of in such product shall be considered to be an amount equivalent to the nonfat solids contained in such product, plus all of the water originally associated with such solids.

7. Delete § 918.50 and substitute therefor the following:

§ 918.50 *Basic formula price to be used in determining the Class I price.* The basic formula price to be used in determining the price per hundredweight of Class I milk shall be the highest of the prices computed pursuant to paragraphs (a), (b), and (c) of this section and paragraph (b) of § 918.51, all for the preceding month.

(a) To the average of the basic or field prices per hundredweight reported to have been paid or to be paid for milk of 3.5 percent butterfat content received from farmers during the month at the following plants or places for which prices have been reported to the market administrator or to the Department of Agriculture:

Companies and Location

Borden Co., Mount Pleasant, Mich.
Borden Co., New London, Wis.
Borden Co., Orfordville, Wis.
Carnation Co., Berlin, Wis.
Carnation Co., Chilton, Wis.
Carnation Co., Oconomowoc, Wis.
Carnation Co., Richland Center, Wis.
Carnation Co., Sparta, Mich.
Pet Milk Co., Belleville, Wis.
Pet Milk Co., Coopersville, Mich.
Pet Milk Co., Hudson, Mich.
Pet Milk Co., New Clarus, Wis.
Pet Milk Co., Wayland, Mich.
White House Milk Co., Manitowoc, Wis.
White House Milk Co., West Bend, Wis.

Add an amount computed by multiplying the Chicago butter price for the current month by 0.12 and then by 5.

(b) The price per hundredweight computed by adding together the values determined pursuant to subparagraphs (1) and (2) of this paragraph:

(1) Add 20 percent to the Chicago butter price for the month and multiply by 4.0.

(2) From the simple average as computed by the market administrator of the weighted averages of carlot prices per pound for nonfat dry milk solids, spray and roller process, respectively, for human consumption, f. o. b. manufacturing plants in the Chicago area as published for the period from the 26th day of the preceding month to the 25th day of the current month by the Department of Agriculture, deduct 5 cents, and multiply by 7.5.

(c) The price per hundredweight resulting from the following formula:

(1) Multiply by 8.53 the average of the daily prices per pound of cheese at Wisconsin primary markets ("cheddars," f. o. b. Wisconsin assembly points, cars or truckloads) as reported by the U. S. D. A. during the month;

(2) Add 0.902 times the Chicago butter price for the month;

(3) Subtract 34.3 cents; and

(4) Add an amount computed by multiplying the Chicago butter price for the month by 0.12 and then by 5.

8. Delete § 918.51 and substitute therefor the following:

§ 918.51 *Class prices.* Subject to the provisions of §§ 918.52 and 918.53, the minimum prices per hundredweight to be paid by each handler for milk received at his fluid milk plant(s) from producers during the month shall be as follows:

(a) *Class I milk.* The price for Class I milk for the month shall be the amount set forth below for such month opposite the price range within which the basic formula price falls plus or minus any amounts calculated pursuant to subparagraph (1) of this paragraph:

Basic formula price range (per hundredweight)	Amount per hundredweight	
	September through February	March through August
Not more than $1.999	$3.48	$3.08
$2.00 but not more than $2.199	3.68	3.28
$2.20 but not more than $2.399	3.88	3.48
$2.40 but not more than $2.599	4.08	3.68
$2.60 but not more than $2.799	4.28	3.88
$2.80 but not more than $2.999	4.48	4.08
$3.00 but not more than $3.199	4.68	4.28
$3.20 but not more than $3.399	4.88	4.48
$3.40 but not more than $3.599	5.08	4.68
$3.60 but not more than $3.799	5.28	4.88
$3.80 but not more than $3.999	5.48	5.08
$4.00 but not more than $4.199	5.68	5.28
$4.20 but not more than $4.399	5.88	5.48
And for each additional 20 cents or fraction thereof	An additional 20 cents.	

(1) Add if the net utilization percentage calculated pursuant to subparagraph (2) of this paragraph is less than, or subtract if it is more than the base utilization range, an amount determined by multiplying such net utilization percentage by the appropriate figure shown in the following tabulation:

Pricing months:	*Cents*
January–February	3
March–June	1
July–September	3
October–December	4

(2) The figure calculated for each month as follows shall be known as the net utilization percentage: Divide the net pounds of Class I milk disposed of by all handlers for the second and third preceding months into the total receipts of milk from producers by all handlers for the same months, multiply by 100, round to the nearest whole percentage number and determine the amount by which such member exceeds the higher figure or is less than the lower figure of the appropriate base utilization range in the following table:

Pricing month	Second and third preceding month	Base utilization range
January	October–November	100–105
February	November–December	101–106
March	December–January	106–111
April	January–February	110–115
May	February–March	112–117
June	March–April	119–124
July	April–May	128–133
August	May–June	128–133
September	June–July	124–129
October	July–August	122–127
November	August–September	115–120
December	September–October	106–111

(b) *Class II milk.* The price for Class II milk shall be the average of the basic or field prices reported to have been paid or to be paid for ungraded milk of 4.0 percent butterfat content, without deduction for hauling or other charges to be paid by the farm shipper, received from dairy farmers during the month at the following plants or places for which prices have been reported to the market administrator or to the Department of Agriculture:

Concern and Location

Olive Branch Cheese Co., Olive Branch, Miss.
Borden Co., Starkville, Miss.
Carnation Co., Tupelo, Miss.
Pet Milk Co., Mayfield, Ky.
Pet Milk Co., Kosciusko, Miss.
Armour Cheese Plant, New Albany, Miss.
Kraft Cheese Plant, Corinth, Miss.

9. Delete § 918.52 and substitute therefor the following:

§ 918.52 *Butterfat differential to handlers.* If the weighted average butterfat content of milk received from producers allocated to Class I milk or Class II milk, respectively, pursuant to § 918.46, for a handler is more or less than 4.0 percent, there shall be added to or subtracted from, as the case may be, the price for such class, for each one-tenth of one percent that such weighted average butterfat test is above or below 4.0 percent, a butterfat differential (computed to the nearest tenth of a cent), calculated for each class as follows:

(a) *Class I Price.* Multiply by 1.2 the Chicago butter price for the month and divide the result by 10.

(b) *Class II Price.* For the months of July through March, multiply by 1.2 the Chicago butter price for the month and divide the result by 10, and for the months of April, May and June, multiply by 1.15 the Chicago butter price for the month and divide by 10.

10. Delete § 918.53 and substitute therefor the following:

§ 918.53 *Transportation differential.* With respect to that portion of milk which is received from producers at a fluid milk plant specified in § 918.7 (b) which is (a) moved as milk from such plant directly to a fluid milk plant located in the marketing area and classified as Class I milk or (b) moved from such plant in fluid form to a nonfluid milk plant and classified as Class I milk, the prices specified in § 918.51 (a) shall be reduced by the amount per hundredweight set forth in the following schedule based on the shortest distance via hard surfaced highway, as determined by the market administrator, from the plant where the milk is first received from producers to the City Hall in Memphis, Tennessee:

Distance from the City Hall in Memphis (miles):	*Amount per hundredweight (cents)*
40 but less than 50	17
50 but less than 60	18
60 but less than 70	19
Within each 10-mile zone thereafter.	An additional 1 cent.

Provided, That for purposes of calculating such location differential with respect to milk transferred between fluid

milk plants, the Class II milk remaining in the transferee-plant after the subtraction pursuant to § 918.46 (a) (2) and (b) shall be assigned to producer milk from other plants in sequence according to the transportation differential applicable at each plant beginning with the plant having the largest differential.

11. Amend paragraphs (c) and (d) of § 918.72 and make any further amendments as will accomplish an equitable allocation of adjustments resulting from the receipts and utilization of milk of the members of a cooperative association.

12. Change the reference in § 918.46 (a) (1) from § 918.41 (b) (3), as stated therein, to "§ 918.41 (b) (4)" and make any and all other appropriate changes and/or corrections to conform other provisions of the order to the foregoing amendments.

Make such adjustments as may be necessary to make the entire order conform with any amendments thereto that may result from this hearing.

Copies of this notice of hearing and of the order now in effect may be procured from the market administrator, 198 S. Main Street, Memphis 3, Tennessee, or from the Hearing Clerk, Room 1353, South Bldg., U. S. Department of Agriculture, Washington 25, D. C., or may be there inspected.

Dated: November 25, 1953.

[SEAL] ROY W. LENNARTSON,
Assistant Administrator.

[F. R. Doc. 53-10052; Filed, Nov. 30, 1953; 8:51 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[17 CFR Part 250]

REQUIREMENT OF PUBLIC INVITATION OF PROPOSALS FOR PURCHASE OR UNDERWRITING OF SECURITIES

REGULATION AND EXEMPTION OF VARIOUS FINANCIAL TRANSACTIONS

Notice is hereby given that the Securities and Exchange Commission has under consideration a proposal to amend § 250.50 (Rule U-50) under the Public Utility Holding Company Act of 1935, which requires with certain exceptions competitive bidding for the purchase or underwriting of securities issued or sold by registered holding companies and subsidiary companies.

The proposal to amend Rule U-50 is made pursuant to the provisions of sections 6 (b) and 20 (a) of the Public Utility Holding Company Act of 1935.

Rule U-50 in its present form was adopted in 1941. Except in the cases specified in paragraph (a) of the rule, it requires that the issue or sale of securities by registered holding companies and subsidiary companies be at competitive bidding.

It is proposed to add to the cases excepted from the operation of the rule the issue and sale of its own securities by a public utility subsidiary of a registered holding company which is not itself a registered holding company, if the issue and sale are subject to exemption under section 6 (b) of the act from the provisions of section 6 (a) of the act. This is proposed in connection with the consideration by the Commission of the issuance of rules which would implement the specified purpose of section 6 (b) to place primary regulatory responsibility upon the local regulatory body which is in the closest and broadest day to day contact with the regulated company.

Section 6 (b) of the act contains the following directive: "The Commission by rules and regulations or order, subject to such terms and conditions as it deems appropriate in the public interest or for the protection of investors or consumers, shall exempt from the provisions of subsection (a) the issue or sale of any security by any subsidiary company of a registered holding company, if the issue and sale of such security are solely for the purpose of financing the business of such subsidiary company and have been expressly authorized by the State Commission of the State in which such subsidiary company is organized and doing business * * *" The Conference Committee Report (H. Rep. No. 1903, 74th Cong., 1st Sess., p. 67) stated that this provision "* * * directs the Commission to exempt the issue of securities by subsidiary companies in cases where holding company abuses are unlikely to exist."

Under the Commission's present practice each exemption under the quoted provision has been granted by order only and the procedures and policies followed have been substantially equated to those applicable to a declaration filed under section 7.

The text of paragraph (a) of Rule U-50 as proposed to be amended would read as follows:

§ 250.50 *Requirement of public invitation of proposals for the purchase or underwriting of securities*—(a) *Scope of section.* This section is applicable to every declaration and application regarding the issuance or sale of any securities of, or owned by, any registered holding company or subsidiary company thereof except:

(1) The issuance or sale of securities pro rata to existing holders of securities of the applicant or declarant (i) pursuant to any preemptive right or privilege or (ii) in connection with any liquidation or reorganization; or

(2) The issuance of any bond, note, or other evidence of debt of a maturity of ten years or less to a commercial bank, insurance company, or similar institution not for resale to the public, provided no finder's fee or other fee, commission, or remuneration is to be paid in connection therewith to any third person (except an associate service company) for negotiating the transaction; or

(3) The issuance or sale of securities to any registered holding company or subsidiary company thereof whose acquisition of such securities has been approved by the Commission pursuant to section 10 of the act; or

(4) The issuance or sale of securities the total proceeds whereof to the issuer or vendor will not exceed $1,000,000; or

(5) The issue and sale by a public-utility company, which is a subsidiary company of a registered holding company and is not itself a registered holding company, of securities of such subsidiary company where such issue and sale are subject to exemption from the provisions of section 6 (a) of the act by reason of the provisions of section 6 (b) of the act; or

(6) The issuance or sale of securities as to which the Commission finds that compliance with paragraph (b) of this section with respect to such issuance or sale is not (i) appropriate to aid the Commission (in carrying out the provisions of section 7 of the act) to determine whether the fees, commissions, or other remuneration to be paid directly or indirectly in connection with the issue, sale, or distribution of such securities are reasonable, or whether any term or condition of such issue or sale is detrimental to the public interest or the interest of investors or consumers; or (ii) appropriate in the public interest or for the protection of investors or consumers as a condition to the exemption of such issuance or sale from the provisions of section 6 (a) of the act, or to aid the Commission (in carrying out the provisions of section 6 (b) of the act) to determine such terms and conditions as it may be appropriate to impose in the public interest or for the protection of investors or consumers in exempting such issuance or sale from the provisions of section 6 (a) of the act; or (iii) necessary or appropriate in the public interest or for the protection of investors or consumers to assure the maintenance of competitive conditions, the receipt of adequate consideration or the reasonableness of any fees or commissions to be paid with respect to sales of securities subject to section 12 (d) of the act. Such a finding may be made in connection with the declaration or application regarding such issuance or sale, or upon a separate application for such a finding.

Nothing in this section shall be deemed to preclude the Commission from entering any order which would otherwise be appropriate under the applicable provisions of the act.

All interested persons are invited to submit data, views and comments on this proposal in writing to the Secretary, Securities and Exchange Commission, at its principal office 425 Second Street NW., Washington 25, D. C., on or before December 31, 1953. After the comments have been received and considered, the Commission will determine whether it is appropriate in the public interest to hold a public hearing on the proposals before further consideration by the Commission.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

NOVEMBER 20, 1953.

[F. R. Doc. 53-10016; Filed, Nov. 30, 1953; 8:47 a. m.]

NOTICES

DEPARTMENT OF THE TREASURY

Internal Revenue Service

[Commissioner's Reorganization Order 15, Amdt. 1]

REGIONAL COMMISSIONERS AND DISTRICT DIRECTORS OF INTERNAL REVENUE

GENERAL DELEGATION OF FUNCTIONS

Pursuant to the authority vested in me as Commissioner of Internal Revenue, paragraph 5 of Commissioner's Reorganization Order No. 15, dated July 1, 1953, is hereby amended to read:

5. *Designation to act as Regional Commissioner or District Director.* Designations to act as Regional Commissioner or District Director shall be made as follows:

(a) *Regional Commissioner.* The Regional Commissioner shall designate an Assistant Regional Commissioner as Acting Regional Commissioner to perform the functions of the Office of Regional Commissioner during any period of absence of the Regional Commissioner. Such designation shall not be applicable if the position of Regional Commissioner becomes vacant. In that event the Commissioner will designate the employee to serve as Acting Regional Commissioner.

(b) *District Director.* In a District Office having an Assistant District Director, such Assistant shall become Acting District Director and perform the functions of the Office of District Director in case of the death, separation, or absence of the District Director, unless and until the Regional Commissioner designates another officer or employee to serve as Acting District Director. In a District Office where there is no Assistant District Director, (1) the Regional Commissioner shall designate the employee who shall become Acting District Director and perform the functions of the Office of District Director in case of the death or separation of the District Director, and (2) the District Director shall designate the employee who shall become Acting District Director and perform the functions of the Office of District Director in the absence of the District Director, unless and until the Regional Commissioner designates another officer or employee to serve as Acting District Director.

(c) *Recording.* Designations as Acting Regional Commissioner and Acting District Director shall be made a matter of record.

(d) *Bonding.* Any requirement for bond for the faithful performance of duty by the District Director shall apply to any officer or employee performing the functions of the District Director as herein provided.

This amendment is effective December 1, 1953.

[SEAL] O. GORDON DELK,
Acting Commissioner.

NOVEMBER 23, 1953.

[F. R. Doc. 53-10040; Filed, Nov. 30, 1953; 8:51 a. m.]

DEPARTMENT OF DEFENSE

Office of the Secretary

SECRETARIES OF ARMY, NAVY, AND AIR FORCE

DELEGATION OF AUTHORITY WITH RESPECT TO REASSIGNMENTS OF REAL PROPERTY

Pursuant to the authority vested in me by Section 202 (f) of the National Security Act of 1947, as amended, 5 U. S. C. 171a, and in accordance with section 202 (c) of the Federal Property and Administrative Services Act of 1949, Public Law 152, 81st Congress, as amended, the following delegation of authority is effective this date.

The Secretary of the Army, the Secretary of the Navy, and the Secretary of the Air Force are hereby respectively authorized:

(a) To make reassignments of real property among activities and organizations within their respective military departments,

(b) To make reassignments of real property to other military departments within the Department of Defense.

Dated: November 21, 1953.

ROGER M. KYES,
Acting Secretary of Defense.

[F. R. Doc. 53-10010; Filed, Nov. 30, 1953; 8:45 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

JEAN ALEXANDRE LOBSTEIN

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property located in Washington, D. C., including all royalties accrued thereunder and all damages and profits recoverable for past infringement thereof, after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., and Property

Jean Alexandre Lobstein, Cormeilles-en-Parisis (Seine et Oise), France, Claim No. 41764; property described in Vesting Order No. 666 (8 F. R. 5047, April 17, 1943) relating to United States Letters Patent Nos. 2,140,756 and 2,234,347 and property described in Vesting Order No. 293, as amended (8 F. R. 10517, July 28, 1943) relating to Serial No. 309951 (United States Letters Patent No. 2,313,492).

Executed at Washington, D. C., on November 20, 1953.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 53-10039; Filed, Nov. 30, 1953; 8:51 a. m.]

DEPARTMENT OF THE INTERIOR

Geological Survey

CALIFORNIA AND WYOMING

DEFINITIONS OF KNOWN GEOLOGIC STRUCTURES OF PRODUCING OIL AND GAS FIELDS

Former paragraph (c) of § 227.0, Part 227, Title 30, Chapter II, Code of Federal Regulations (1947 Supp.), codification of which has been discontinued by a document published in Part II of the FEDERAL REGISTER dated December 31, 1948, is hereby supplemented by the addition of the following list of structures defined effective as of the dates shown:

(1) CALIFORNIA

Name of Field, Effective Date, and Acreage

Antelope Hills Field (revision), July 31, 1953, 930.

Coles Levee Field (revision), June 21, 1952, 10,145.

Cosral Canyon Field (revision), November 6, 1948, 560.

Kern Bluff Field, October 23, 1953, 1,245.

Kern Front Field (revision), March 25, 1952, 5,920.

Lost Hills Field (revision), July 31, 1953, 6,084.

McVan Field (revision), November 6, 1949, 960.

Paloma Field (revision), March 28, 1950, 11,182.

Premier Field (revision and consolidation), October 23, 1953, 3,795.

San Ardo Field, October 23, 1953, 7,378.

Sharktooth Hill Field (revision and consolidation), October 23, 1953, 1,080.

West Mountain Field (revision), July 31, 1953, 796.

Wheeler Ridge Field (revision), April 14, 1952, 1,360.

(2) WYOMING

Castle Creek Field, February 7, 1953, 320.

Deer Creek Field, September 1, 1952, 219.

East Salt Creek Field, October 19, 1952, 720.

THOMAS B. NOLAN,
Acting Director.

[F. R. Doc. 53-10013; Filed, Nov. 30, 1953; 8:46 a. m.]

DEPARTMENT OF AGRICULTURE

Office of the Secretary

KENTUCKY

DISASTER ASSISTANCE; DELINEATION AND CERTIFICATION OF COUNTIES CONTAINED IN DROUGHT AREA

Pursuant to the authority delegated to me by the Administrator of the Federal Civilian Defense Administration (18 F. R. 4699) and for the purposes of section 2 (d) of Public Law 38, 81st Congress, as amended by Public Law 115, 83d Congress, the following additional counties are determined as of November 12, 1953, to be in the area affected by the major disaster occasioned by drought determined by the President on September 16, 1953, pursuant to Public Law 875, 81st Congress:

KENTUCKY

Allen.	Larue.
Barren.	Logan.
Bourbon.	Madison.
Breathitt.	Mason.
Breckenridge.	Meade.
Butler.	Mercer.
Campbell.	Montgomery.
Carroll.	Muhlenberg.
Clark.	Nicholas.
Fayette.	Oldham.
Franklin.	Owen.
Gallatin.	Pendleton.
Garrard.	Robertson.
Grant.	Scott.
Grayson.	Shelby.
Greene.	Simpson.
Hardin.	Spencer.
Harrison.	Taylor.
Henry.	Warren.
Hopkins.	Wolfe.
Jessamine.	Woodford.
Kenton.	

Done this 24th day of November 1953.

[SEAL] TRUE D. MORSE,
Acting Secretary of Agriculture.

[F. R. Doc. 53-10017; Filed Nov. 30, 1953; 8:47 a. m.]

MISSISSIPPI

DISASTER ASSISTANCE; DELINEATION AND CERTIFICATION OF COUNTIES CONTAINED IN DROUGHT AREA

Pursuant to the authority delegated to me by the Administrator of the Federal Civilian Defense Administration (18 F. R. 4609) and for the purposes of section 2 (d) of Public Law 38, 81st Congress, as amended by Public Law 115, 83d Congress, the following additional counties are determined as of November 12, 1953, to be in the area affected by the major disaster occasioned by drought determined by the President on September 16, 1953, pursuant to Public Law 875, 81st Congress:

MISSISSIPPI

Desoto.
Marshall.
Tate.

Done this 24th day of November 1953.

[SEAL] TRUE D. MORSE,
Acting Secretary of Agriculture.

[F. R. Doc. 53-10018; Filed, Nov. 30, 1953; 8:47 a. m.]

OKLAHOMA

DISASTER ASSISTANCE; DELINEATION AND CERTIFICATION OF COUNTIES CONTAINED IN DROUGHT AREA

Pursuant to the authority delegated to me by the Administrator of the Federal Civilian Defense Administration (18 F. R. 4609), and for the purposes of section 2 (d) of Public Law 38, 81st Congress, as amended by Public Law 115, 83d Congress, the following additional counties are determined as of November 12, 1953, to be in the area affected by the major disaster occasioned by drought determined by the President on June 26, 1953, pursuant to Public Law 875, 81st Congress:

OKLAHOMA

Cherokee.
Mayes.
Wagoner.

Done this 24th day of November 1953.

[SEAL] TRUE D. MORSE,
Acting Secretary of Agriculture.

[F. R. Doc. 53-10019; Filed, Nov. 30, 1953; 8:48 a. m.]

TENNESSEE

DISASTER ASSISTANCE; DELINEATION AND CERTIFICATION OF COUNTIES CONTAINED IN DROUGHT AREA

Pursuant to the authority delegated to me by the Administrator of the Federal Civilian Defense Administration (18 F. R. 4609) and for the purposes of section 2 (d) of Public Law 38, 81st Congress, as amended by Public Law 115, 83d Congress, the following additional counties are determined as of November 12, 1953, to be in the area affected by the major disaster occasioned by drought determined by the President on September 18, 1953, pursuant to Public Law 875, 81st Congress:

TENNESSEE

Cheatham.	Lincoln.
Chester.	Macon.
Davidson.	Marshall.
Dickson.	Maury.
Fayette.	McNairy.
Giles.	Montgomery.
Greene.	Moore.
Hamblen.	Robertson.
Hancock.	Rutherford.
Hardeman.	Shelby.
Hardin.	Stewart.
Hawkins.	Sullivan.
Hickman.	Sumner.
Houston.	Trousdale.
Humphreys.	Washington.
Jefferson.	Wayne.
Lawrence.	Williamson.
Lewis.	Wilson.

Done this 24th day of November 1953.

[SEAL] TRUE D. MORSE,
Acting Secretary of Agriculture.

[F. R. Doc. 53-10020; Filed, Nov. 30, 1953; 8:48 a. m.]

CIVIL AERONAUTICS BOARD

[Docket No. 5770 et al.]

LAKE CENTRAL AIRLINES, INC., ET AL.; ACQUISITION INVESTIGATION

NOTICE OF POSTPONEMENT OF HEARING

In the matter of the joint application for approval of certain interlocking relationships involving North Central Airlines, Inc. and Lake Central Airlines, Inc., and the matter of the proposed acquisition of the control of Lake Central Airlines, Inc. by North Central Airlines, Inc. and/or Ozark Airlines, Inc., and the investigation of the acquisition of Lake Central's Route 88 in whole or in part by North Central Airlines, Inc., Ozark Airlines, Inc. and/or Allegheny Airlines, Inc. pursuant to sections 403 and 409 (a) of the Civil Aeronautics Act of 1938, as amended, under Docket Nos. 5770, 6024, 6068, and 6213.

Notice is hereby given, pursuant to the Civil Aeronautics Act of 1938, as amended, that the hearing in the above-entitled proceeding previously assigned to be held on November 30, 1953, at 10:00 a. m., e. s. t., in Room 1205, Temporary Building No. 4, Seventeenth and Constitution Avenue NW., Washington, D. C., before Examiner Paul N. Pfeiffer is hereby postponed until January 18, 1954, at 10:00 a. m., e. s. t., in Room 5132, Department of Commerce Building, Fourteenth Street, between E Street and Constitution Avenue NW., Washington, D. C.

Dated at Washington, D. C., November 25, 1953.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 53-10054; Filed, Nov. 30, 1953; 8:51 a. m.]

FEDERAL POWER COMMISSION

[Docket No. G-2075]

TRANSCONTINENTAL GAS PIPE LINE CORP.

NOTICE OF POSTPONEMENT OF HEARING

NOVEMBER 24, 1953.

Upon consideration of request filed November 24, 1953, by Staff Counsel, for a postponement of the hearing now scheduled for November 30, 1953, in the above-designated matter;

Notice is hereby given that said hearing be and it is hereby postponed to December 7, 1953, at the same time and place.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 53-10021; Filed, Nov. 30, 1953; 8:48 a. m.]

[Project No. 2039]

DELAWARE RIVER DEVELOPMENT CORP.

NOTICE OF ORDER FURTHER EXTENDING PERIOD OF PRELIMINARY PERMIT

NOVEMBER 24, 1953.

Notice is hereby given that on September 14, 1953, the Federal Power Commission issued its order adopted September 9, 1953, further extending period of preliminary permit in the above-entitled matter.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 53-10022; Filed, Nov. 30, 1953; 8:48 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File Nos. 59-10, 54-82, 59-39, 54-50, 54-147]

NORTH AMERICAN CO. ET AL.

SUPPLEMENTAL ORDER APPROVING PAYMENT OF ADDITIONAL FEE

NOVEMBER 23, 1953.

In the Matter of the North American Company and its subsidiary companies, File No. 59-10; the North American Company, File No. 54-82; North American Light & Power Company Holding Com-

pany System and the North American Company, File No. 59-39; North American Light & Power Company, File No. 54-50; Illinois Power Company, File No. 54-147.

The Commission by memorandum opinions and orders herein dated December 21, 1950, and May 7, 1951, having approved the payment by North American Light & Power Company to James F. Masterson of a counsel fee in the amount of $21,975 and reimbursement for expenses in the amount of $615.47 and having denied the payment to James F. Masterson the amount of $10,000 as additional counsel fee; and

The United States District Court for the District of Delaware, on the 15th day of August 1952, having ordered and decreed that the Commission amend its aforesaid memorandum opinions and orders to permit North American Light & Power Company to pay to said James F. Masterson the said additional fee of $10,000, which said order of the United States District Court for the District of Delaware has been affirmed on appeal: It is so ordered.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-9975; Filed, Nov. 27, 1953; 8:49 a. m.]

[File No. 70-2978]

OHIO POWER CO.

SUPPLEMENTAL ORDER RESCINDING TERMS AND CONDITIONS WITH RESPECT TO PREFERRED STOCK ISSUE.

NOVEMBER 23, 1953.

The Commission on January 12, 1953 having entered an order herein imposing certain protective terms and conditions with respect to the issue and sale of 100,000 shares of Cumulative Preferred Stock of the applicant, the Ohio Power Company; and

The applicant having subsequently amended its Articles of Incorporation making such protective provisions applicable to all issues of its Cumulative Preferred Stock, and having requested that the terms and conditions imposed in the aforesaid order be rescinded as no longer necessary; and

The Commission finding that the terms and conditions imposed in said order with respect to the issue and sale of applicant's Cumulative Preferred Stock are now duplicative and unnecessary:

It is ordered, That said protective terms and conditions contained in the order of January 12, 1953 aforesaid be, and they hereby are, rescinded.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 53-9976; Filed, Nov. 27, 1953; 8:49 a. m.]

INTERSTATE COMMERCE COMMISSION

[4th Sec. Application 28679]

PETROLEUM RESIDUAL FUEL OIL FROM EL DORADO AND POTWIN, KANS., TO ST. JOSEPH, MO.

APPLICATION FOR RELIEF

NOVEMBER 25, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: F. C. Kratzmeir, Agent, for the Missouri Pacific Railroad Company.

Commodities involved: Petroleum residual fuel oil, in tank-car loads.

From: El Dorado and Potwin, Kans.

To: St. Joseph, Mo.

Grounds for relief: Competition with rail carriers and market competition.

Schedules filed containing proposed rates: F. C. Kratzmeir, Agent, I. C. C. No. 3825, supp. 195.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 53-10026; Filed, Nov. 30, 1953; 8:49 a. m.]

[4th Sec. Application 28680]

WATER-RAIL RATES ON IRON AND STEEL FROM BALTIMORE, MD., TO THE SOUTH

APPLICATION FOR RELIEF

NOVEMBER 25, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for Baltimore Steam Packet Company and rail carriers parties to schedule listed below.

Commodities involved: Iron and steel articles, carloads.

From: Baltimore, Md.

To: Points in southern territory.

Grounds for relief: Competition with rail carriers, to maintain grouping.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, I. C. C. No. 1258, supp. 50.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 53-10027; Filed, Nov. 30, 1953; 8:49 a. m.]

[4th Sec. Application 28681]

MALT LIQUORS FROM INDIANA, MICHIGAN, OHIO, AND PENNSYLVANIA TO SWEETWATER AND SAN ANGELO, TEX.

APPLICATION FOR RELIEF

NOVEMBER 25, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: F. C. Kratzmeir, Agent, for carriers parties to his tariff, I. C. C. No. 3912.

Commodities involved: Malt liquors, viz.: ale, beer, beer tonic, porter or stout, carloads.

From: Points in Indiana, Michigan, Ohio, and Pennsylvania.

To: Sweetwater and San Angelo, Tex.

Grounds for relief: Competition with rail carriers and circuitous routes.

Schedules filed containing proposed rates: F. C. Kratzmeir, Agent, I. C. C. No. 3912, supp. 222.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hear-

ing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 53-10028; Filed, Nov. 30, 1953; 8:49 a. m.]

[4th Sec. Application 28682]

FERTILIZER FROM ARKANSAS, LOUISIANA AND TEXAS TO SUFFOLK, VA., GROUP

APPLICATION FOR RELIEF

NOVEMBER 25, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: F. C. Kratzmeir, Agent, for carriers parties to schedule listed below.

Commodities involved: Fertilizer, fertilizer materials and solutions, carloads.

From: Points in Arkansas, Louisiana and Texas.

To: Suffolk, Va., and points grouped therewith.

Grounds for relief: Rail competition, circuity, market competition, to apply rates constructed on the basis of the short line distance formula, and additional destinations.

Schedules filed containing proposed rates: F. C. Kratzmeir, Agent, I. C. C. No. 3746, supp. 128.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 53-10029; Filed, Nov. 30, 1953; 8:50 a. m.]

[4th Sec. Application 28683]

LUMBER FROM MEMPHIS, TENN., TO SOUTH DAKOTA AND WYOMING

APPLICATION FOR RELIEF

NOVEMBER 25, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: F. C. Kratzmeir, Agent, for carriers parties to schedule listed below.

Commodities involved: Lumber and related articles, carloads.

From: Memphis, Tenn.

To: Points in South Dakota and Wyoming.

Grounds for relief: Rail competition, circuity, and to maintain grouping.

Schedules filed containing proposed rates: F. C. Kratzmeir, Agent, I. C. C. No. 3985, supp. 35.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 53-10030; Filed, Nov. 30, 1953; 8:50 a. m.]

[4th Sec. Application No. 28684]

BRICK FROM LOCHER, VA., TO THE SOUTH

APPLICATION FOR RELIEF

NOVEMBER 25, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers, parties to schedule listed below.

Commodities involved: Brick and related articles, carloads.

From: Locher, Va.

To: Points in Florida, Georgia, North Carolina, South Carolina, and Virginia.

Grounds for relief: Rail competition, circuity, to maintain grouping, and to apply rates constructed on the basis of the short line distance formula.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, I. C. C. No. 1278, supp. 41.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 53-10031; Filed, Nov. 30, 1953; 8:50 a. m.]

[4th Sec. Application 28685]

PETROLEUM OIL FROM OAK POINT, LA., TO MARYLAND, MICHIGAN, NEW JERSEY AND PENNSYLVANIA

APPLICATION FOR RELIEF

NOVEMBER 25, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: F. C. Kratzmeir, Agent, for carriers parties to tariff listed below.

Commodities involved: Petroleum oil, in tank-car loads.

From: Oak Point, La.

To: Points in Maryland, Michigan, New Jersey, and Pennsylvania.

Grounds for relief: Competition with rail carriers and circuitous routes.

Schedules filed containing proposed rates: F. C. Kratzmeir, Agent, I. C. C. No. 3651, supp. 327.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 53-10032; Filed, Nov. 30, 1953; 8:50 a. m.]

[4th Sec. Application 28686]

BRICK FROM CORONA, N. Y., TO SOUTHERN TERRITORY

APPLICATION FOR RELIEF

NOVEMBER 25, 1953.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: C. W. Boin, Agent, for carriers parties to schedule listed below.

Commodities involved: Brick and related articles, also refractory articles, carloads.

From: Corona, N. Y.

To: Points in southern territory.

Grounds for relief: Competition with rail carriers, circuitous routes, to maintain grouping, and additional origin.

Schedules filed containing proposed rates: C. W. Boin, Agent, I. C. C. No. A–917, supp. 16.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Secretary.

[F. R. Doc. 53–10033; Filed, Nov. 30, 1953; 8:50 a. m.]